

**REQUEST FOR QUOTATION
(THIS IS NOT AN ORDER)**THIS RFQ ☒ IS ☐ IS NOT A SMALL BUSINESS SET-ASIDE

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1. REQUEST NO. RFQP03072600012		2. DATE ISSUED 05/08/2026		3. REQUISITION/PURCHASE REQUEST NO.		4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/ OR DMS REG. 1		RATING	
5a. ISSUED BY Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599						6. DELIVER BY (Date) 07/31/2026			
5b. FOR INFORMATION CALL (NO COLLECT CALLS) NAME M. Smiley msmiley@bop.gov						7. DELIVERY ☒ FOB DESTINATION ☐ OTHER (See Schedule)			
						9. DESTINATION			
8. TO:						a. NAME OF CONSIGNEE Federal Bureau of Prisons			
a. NAME						b. STREET ADDRESS FCI Jesup 2600 HIGHWAY 301 SOUTH Attn: Food Svs. Warehouse JES- FoodSvcs@bop.gov			
b. COMPANY						c. CITY Jesup			
c. STREET ADDRESS						d. STATE GA			
d. CITY						e. STATE GA		e. ZIP CODE 31599	
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date) 05/18/2026 16:00 ET						IMPORTANT: This is a request for information, and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.			

11. SCHEDULE (Include applicable Federal, State and local taxes)

ITEM NO. (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
	Delivery Date: 07/31/2026 FY26 4th Qtr Subsistence UEI #: _____ Email: _____ Phone: _____ NO SPECIFICATION SUBSTITUTION AUTHORIZED For Any Questions Contact: AFSA B. Anderson, jes-foodsvcs- s@bop.gov Firm Fixed Price See Continuation Sheet(s)				

12. DISCOUNT FOR PROMPT PAYMENT	a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS	
	NUMBER	PERCENTAGE	NUMBER	PERCENTAGE	NUMBER
	0.00 %	0.00 %	0.00 %	0	0.00

NOTE: Additional provisions and representations [] are [X] are not attached.

13. NAME AND ADDRESS OF QUOTER			14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION	
a. NAME OF QUOTER			16. SIGNER		b. TELEPHONE AREA CODE	
b. STREET ADDRESS						
c. COUNTY			a. NAME (Type or print)		b. TELEPHONE AREA CODE	
d. CITY			e. STATE		f. ZIP CODE	
			c. TITLE (Type or print)		NUMBER	

Section 1 - Commodity or Services Schedule

SCHEDULE OF SUPPLIES/SERVICES

CONTINUATION SHEET

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Beans, Dry, Black Beans, Whole, U.S. Grade 1 - 3 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 3,750.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcS@bop.gov	3,750	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Beans, Dry, Black Eyed Peas, U.S. Grade 1 - 3 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 400.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcS@bop.gov	400	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0006	Beans, Dry, Pea (Navy), Whole, U.S. Grade 1 - 2 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 400.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcS@bop.gov	400	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0007	Beans, Dry, Pinto, Whole, U.S. Grade 1 - 3 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026	5,800	LB	\$ _____	\$ _____

	Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 5,800.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0010	Beans, Garbanzo (Chick Peas), Canned, In Brine, Meatless. (CID AA-20134D, Type I, Class J, Style 1, Nutrient content claim d, Agricultural practice (1)). 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0012	Beans, Pea (Navy Beans). (CID A-A-20134D, Type I, Class A, Style 1), Nutrient content claim d, Agricultural practice (1). 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0013	Beans, Pintos, Canned, In Brine, Meatless. (CID A-A-20134D, Type I, Class B, Style 1), Nutrient content claim d, Agricultural practice (1). 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH	56	CS	\$ _____	\$ _____

	Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0014	Beans, Great Northern, In Brine, Meatless. (CID A-A-20134D, Type I, Class C, Style 1), Nutrient content claim d, Agricultural practice (1). 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0015	Beans, Black, Canned, In Brine, Meatless. (CID A-A-20134D, Type I, Class K, Style 1), Nutrient content claim d, Agricultural practice (1). 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0017	Rice, U.S. Grade 1 or 2, Long Grain MILLED Rice, Parboiled Light - 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 15,300.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	15,300	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0019	Pasta, Macaroni, Elbow Form, Whole Wheat Blend, Whole Wheat, or Regular. (CID A-A-20062F, Type I, Style A, B, or C). Enrichment type (A). 1 lb to 40 lb sealed bags. PSC: 8945	3,000	LB	\$ _____	\$ _____

	Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 3,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0020	Pasta, Lasagna Noodles, Curl or Flat Form, Whole Wheat Blend, Whole Wheat, or Regular. (CID A-A-20062F, Type VIII, Class 1 of or 2, Style A, B, or C). Enrichment type (A). 1 lb to 40 lb sealed bags. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 500.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	500	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0021	Pasta, Macaroni, Rotini Form, Whole Wheat Blend, Whole Wheat, or Regular. (CID A-A-20062F, Type V, Style A, B, C, or D). Enrichment type (A). 1 lb to 40 lb sealed bags PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 1,500.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	1,500	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0023	Pasta, Spaghetti, Long Form, Whole Wheat Blend, Whole Wheat, or Regular. (CID A-A-20062F, Type VI, Style A, B, or C). Enrichment type (A). 1 lb to 40 lb sealed bags. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 3,300.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup	3,300	LB	\$ _____	\$ _____

	2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0028	Flour, All Purpose wheat flour, or Bakers Wheat Flour, Unbleached or Bleached. (CID A-A-20126H, Type I (Class 1-3), II (Class 1-2) or III (Class 1-5) VI, Style A or Style B, Protein level a-d, Packaging type 1) Size g-j, Agricultural practice i). 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 6,100.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	6,100	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0029	Non-Fat Dry Milk, Fortified with Vitamins A and D. (CID A-A-20085D, Type II, Class A, B, or C). - 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 1,050.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	1,050	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0030	Cereal, Prepared, Ready to Eat, Wheat, Bran Flakes, made from Whole grains or combination of whole and refined grains. (CID A-A-20000E, Type I, Class 5, Grain Composition a or b, Fiber 2), Sodium (a), Packaging type (vii), Agricultural practice (aa)). Bulk package range 12 to 40 lb case. Specify case weight on bid PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 3,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	3,000	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0032	Hominy Grits, Enriched, White, Regular, Unflavored (CID A-A-20035E, Type I or II, Style A, Flavor 1 - 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 500.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	500	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0033	Cereal, Rolled Oats, Quick cooking, Unflavored, Regular, Any container size (CID A-A-20090J, Type II, Flavor A, Style 1, Container size n - Other (as specified by the purchaser) Agricultural practice (i) - Conventional). 40- 50LB BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 6,750.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	6,750	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0038	Soy Protein Products (SPP), Meat Flavor, Bits or Crumbles. Soy Protein Products (SPP) covered by this specification are food products produced by the reduction or removal from soybeans of certain of the major non-protein constituents (water, oil, carbohydrates) in a manner to achieve a protein content of: – in the case of soy protein flour (SPF) 50% or more and less than 65%; – in the case of soy protein concentrate (SPC) 65% or more and less than 90%; – in the case of soy protein isolate (SPI) 90% or more. The protein content is calculated on a dry weight basis excluding added vitamins, minerals, amino acids and food additives. Product comes dehydrated, in bulk packaging. Product will not contain any animal by products or ingredients. 1-25LB PACKAGE/BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 100.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	100	LB	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0039	Non-silken Tofu, Regular or Organic, Firm, Medium Firm, Extra Firm, or Super Firm, Refrigerated. Ingredients include: Water, Regular or Organic Soy Beans, Calcium Sulfate or Glucono Delta Lactone, and Calcium Chloride. Note package size on bid. Product will not contain any animal by product or ingredients. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 3,021.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	3,021	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0043	BUTTER, Bulk (Made exclusively from milk or cream or both, with or without common salt, and with or without additional coloring matter, and containing not less than 80 percent by weight of milkfat). U.S. Grade AA, A, or B. As defined in 7 CFR 58.2621-2627. State case size and pack on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 1,440.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	1,440	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0044	BUTTER, Reddies. 90 patties per lb on paper chips, 5 grams each. (Made exclusively from milk or cream or both, with or without common salt, and with or without additional coloring matter, and containing not less than 80 percent by weight of milkfat). U.S. Grade AA, A, or B. As defined in 7 CFR 58.2621-2627. State case size and pack on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 428,432.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	428,432	EA	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0054	Pickle, Relish, Sweet (mild or regular), Bulk, Cured. Product will comply with the United States Standards for Grades of Pickles (84 FR16381). Grade A or B. 4/1 Gallon Plastic Containers per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 31.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	31	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0057	Vinegar, Cider or Distilled, 50 Grain Strength, 4/1 Gallon containers per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 20.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	20	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0062	Sugar, White (Refined), Granulated (fine, extra fine, or superfine) (CID A-A-20135E, Type I, Style A or B). 1LB-25LB CONTAINER/BAG PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 471.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	471	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0068	Taco Shells, Corn, U Shaped, Enriched. (CID A-A-20143B, Type III, Style A, Shape b, Enrichment type i). Each. State case count on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule:	10,000	EA	\$ _____	\$ _____

	<u>Delivery Description:</u> Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 10,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0069	Tortillas, Wheat, White with spices or herbs, or Other. 7" - 10" in diameter, Round Shelf stable, refrigerated, or frozen, Table Ready. (CID A-A-20143B, Type 1, Style B, C, or E, Size 7, 8, or 9, Shape a, Enrichment type I, Product state a, c, or d, Cook state I). Each. State case count on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: <u>Delivery Description:</u> Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 12,960.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	12,960	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0071	Tortilla Chips, Corn, Round or Triangular, Enriched, Shelf Stable, Table Ready (CID A-A-20143B, Type II, Style A, Enrichment type I). Bulk packaged PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: <u>Delivery Description:</u> Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 1,260.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	1,260	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0072	Tomato Catsup, as defined in the standard of identity for catsup, ketchup, catchup (21 CFR 155.194). U.S. Grade A-C. 6/#10 Cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: <u>Delivery Description:</u> Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH	56	CS	\$ _____	\$ _____

	Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0074	Tomatoes, Canned, Diced, as defined in the standard of identity for canned tomatoes (21 CFR 155.190). U.S. Grade A-C, Average drained weight of 54.7 to 63.5 ounces per #10 can. 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 280.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	280	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0075	Tomato, Paste, as defined in the standard of identity for tomato paste (21 CFR 155.191). Natural Tomato Soluble Solids ranging from extra heavy to medium concentration (28 to 39.3%). U.S. Grade A, U.S. Fancy, U.S. Grade C, or U.S. Standard. 6/#10 cans per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0078	Vegetable, Beans, Green, Canned, Cut, Sliced Lengthwise, or French Style, Round Tye, Good to reasonably good character (A or B), Minimum drain weight 59 oz. U.S. Grade A-C. As defined in Food and Drug Standard of Identity 21 CFR 155.120. Originated from crops that have been 100 percent grown, processed, and packed in the United States or Canada. 6/#10 cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 256.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	256	CS	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0080	Vegetable, Beets, Canned, Whole, Slices, Quarters, Diced, Julienne, French Style or Cut. Minimum drain weight 64 oz. U.S. Grade A, U.S. Grade C or U.S. Standard. As defined in Food and Drug Standard of Identity 21 CFR 155.200. Originated from crops that have been 100 percent grown, processed, and packed in the United States or Canada. 6/#10 cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 112.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	112	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0081	Vegetable, Carrots, Canned, Sliced, Diced, Julienne, French Style, or Cut. Minimum drain weight 64 oz. U.S. Grade A, U.S. Fancy, U.S. Grade C or U.S. Standard. As defined in Food and Drug Standard of Identity 21 CFR 155.200. Originated from crops that have been 100 percent grown, processed, and packed in the United States or Canada. 6/#10 cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 343.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	343	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0082	Vegetable, Corn, Whole Kernel (Whole Grain), Canned, Conventional or Supersweet, Golden (or yellow), Grade A - C. As defined in Food and Drug Standard of Identity 21 CFR 155.130. Originated from crops that have been 100 percent grown, processed, and packed in the United States or Canada. 6/#10 cans per case or 6/75 oz vac-pack cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 263.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	263	CS	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0084	Vegetable, Mixed (5-7 way blend mix including carrots, potatoes, green beans, peas, corn, lima beans, and celery), Canned, With Salt, With Salt and onion flavoring, No Salt Added, Low Sodium, or Other. (CID A-A-20120F, Type I, Type II, Style A, B, C, D, or E; Container size 4). Minimum drain weight of 64 oz. Originated from crops that have been 100 percent grown, processed, and packed in the United States or Canada. 6/#10 cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 112.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	112	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0086	Vegetable, Peas, Sweet, Canned. U.S. Grade A - C. As defined in Food and Drug Standard of Identity 21 CFR 155.170. Originated from crops that have been 100 percent grown, processed, and packed in the United States or Canada. 6/#10 cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 285.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	285	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0088	Vegetable, Spinach, Cut leaf or Sliced, Chopped, U.S. Grade A, U.S. Fancy, U.S. Grade B, or U.S. Extra Standard. As defined in Food and Drug Standard of Identity 21 CFR 155.200. Originated from crops that have been 100 percent, grown, processed, and packed in the United States or Canada, 6/#10 cans per case. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 369.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	369	CS	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0122	Spices, Garlic, Powder. From dehydrated garlic bulb ground to a fine powder after the milling process. 100% air dried garlic. Appearance and Flavor Cream Brown Fine Powder with the characteristic odor and flavor of garlic. No off notes. Texture - A dry medium fine granular powder, slightly fibrous. Moisture less than 12%. Packaging must indicate actual delivered weight of product. Pure - no additives, extenders, foreign matter, or flow agents. 1/2 oz to 50 lb sealed plastic containers or boxes. Note package size on bid. Note price by the pound. 6lb-10lb container PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 500.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	500	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0126	Juice, Lemon, Reconstituted, must comply with 21 Code of Federal Regulations (CFR) § 146.114. (CID A-A-20144C, Type I, Style A, Package type 1 - Plastic bottle, Agricultural practice a - Conventional). Note package size on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 40.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	40	CO	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0127	Juice, Lime, Reconstituted, (CID A-A-20144C, Type II, Style A, Package type 1 - Plastic bottle, Agricultural practice a - Conventional). Note package size on bid PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 335.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	335	CO	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0130	Spices, Paprika, Ground. (CID A-A-20001C, Type I, Spice V, Form 1, Agricultural practice (i)). Packaging must indicate actual delivered weight of product. Pure - no additives, extenders, foreign matter, or flow agents. 1/2 oz to 50 lb sealed plastic containers or boxes. Note package size on bid. Note price by the pound. 6lb-10lb container PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 100.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	100	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0133	Spices, Pepper, Black, Ground. (CID A-A-20001C, Type I, Spice X, Form 1, Agricultural practice (i)). Packaging must indicate actual delivered weight of product. Pure - no additives, extenders, foreign matter, or flow agents. 1/2 oz to 50 lb sealed plastic containers or boxes. Note package size on bid. Note price by the pound. 6lb-10lb container PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 200.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	200	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0143	Soup Base, Bouillon, Chicken Flavor, Low or Reduced Sodium, Powdered, No added monosodium glutamate. (CID A-A-20202B, Type II, Class 2 or 3, Style A, Flavor Enhancer A). Maximum moisture percent by weight is 3.5. Maximum total fat percent by weight is 15%. Maximum of 140 mg of sodium per 8 oz. of finished product, Finished product must be completely soluble in boiling water when prepared according to the label instructions, Single yield: The one (1) lb. of powdered finished product must dilute to a final volume of not less than five (5) gallons (5.67 grams makes an 8 oz. cup serving size) (Double yield -1 lb = 10> gal) (triple yield -1 lb = 15> gallon), Yield must be marked on container, All delivered product must be labeled with ingredients. Quote must include cost for finished 10 gallons of broth. Specify case weight on bid. 25lb container PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 250.000000 Delivery Address: Federal Bureau of Prisons	250	LB	\$ _____	\$ _____

	FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0144	Soup Base, Bouillon, Vegetable Flavor, Low or Reduced Sodium, Powdered, No added monosodium glutamate. (CID A-A-20202B, Type IV, Class 2 or 3, Style A, Flavor Enhancer A). Maximum moisture percent by weight is 3.5. Maximum total fat percent by weight is 15%. Maximum of 140 mg of sodium per 8 oz. of finished product, Finished product must be completely soluble in boiling water when prepared according to the label instructions, Single yield: The one (1) lb. of powdered finished product must dilute to a final volume of not less than five (5) gallons (5.67 grams makes an 8 oz. cup serving size) (Double yield -1 lb = 10> gal) (triple yield -1 lb = 15> gallon), Yield must be marked on container, All delivered product must be labeled with ingredients. Quote must include cost for finished 10 gallons of broth. Specify case weight on bid. 25lb container PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 292.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	292	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0145	Meats, Beef, Ground, 80% Lean, IMPS 136, delivered Frozen. Ground Beef shall consist of chopped fresh and/or frozen beef without seasoning. In addition product must be produced from current raw material, no bench trimmings, steak trim, or re-ground product to be used as raw material. Finished product shall not contain more than 20 percent fat, and shall not contain added water, phosphates, binders, or extenders. No partially defatted tissue or advanced meat recovery product. PRODUCT MUST BE 6 MONTHS OR YOUNGER UPON DELIVERY WITH THE DATE CLEARLY ON THE LABEL, (NO STAMPED OR WRITTEN DATES ALLOWED). When beef cheek meat (trimmed beef cheeks) is used in the preparation, the amount of such meat shall be limited to 25 percent; (NO ORGAN OR TONGUE MEAT) Delivered cases must be labeled Beef, All Beef, Pure Beef, or 100% Beef and with fat percentage. Manufacturer's letters will NOT be accepted in lieu of labeling. Upon delivery, product must have a rosy red appearance. Product that is grey, brown or tan in color will be rejected. Clear 1 mil or thicker sealed bags. No open bags, opaque or colored bags. Note weight of packaging and case size on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 18,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599	18,000	LB	\$ _____	\$ _____

	Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0146	Meats, Beef, Ground, Patties, IMPS 1136, 80% Lean, Frozen, Round in Shape, with Paper Separation or Individually Quick Frozen. Ground Beef Patties shall consist of chopped fresh and/or frozen beef without seasoning. In addition product must be produced from current raw material, no bench trimmings, steak trim, or re-ground product to be used as raw material. Finished product shall not contain more than 20 percent fat, and shall not contain added water, phosphates, binders, or extenders. No partially defatted tissue or advanced meat recovery product. PRODUCT MUST BE 6 MONTHS OR YOUNGER UPON DELIVERY WITH THE DATE CLEARLY ON THE LABEL, (NO STAMPED OR WRITTEN DATES ALLOWED). When beef cheek meat (trimmed beef cheeks) is used in the preparation, the amount of such meat shall be limited to 25 percent; (NO ORGAN OR TONGUE MEAT) Delivered cases must be labeled Beef, All Beef, Pure Beef, or 100% Beef and with fat percentage. Manufacturer's letters will NOT be accepted in lieu of labeling. Upon delivery, product must have a rosy red appearance. Product that is grey, brown or tan in color will be rejected. Product to be packed in 10 to 60 lb cases. 1 mil or thicker bags. Patties will be packed in boxes completely lined with plastic bags. The open end of the bag will overlap at the top to completely cover the product. Size of patty to be determined locally and size noted on bid. 5.3 OUNCE SERVING PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 8,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	8,000	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0148	Meats, Beef Roast, Raw, Beef Top or Bottom Round (Gooseneck), or Strip Loin, Boneless. IMPS 168 - Round, Top (Inside), Untrimmed, 169 - Round, Tip (Inside), 169A - Round, Tip (Inside), Cap Off, 170 - Round, Bottom (Gooseneck), 170A - Round, Bottom (Gooseneck), Heel Out, 171B - Round, Outside Round (Flat), 180 - Loin, Strip Loin, Boneless. Frozen, weight range approximately 12 to 28 lb. Quote MUST indicate actual IMPS & average roast weight of quoted item. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 8,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	8,000	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT

0150	Meats, Chicken Breast, Boneless, Skinless, Raw, White Meat (Breast Meat), Frozen, A quality per the USDA, United States Classes, Standards, and Grades for Poultry Agricultural Marketing Service (AMS) 7 CFR § 70 and 70.200 et seq., §70.220, §70.232, §70.233, §70.234 A Quality. All processing activities shall comply with all applicable FSIS regulations and requirements, including 9 CFR § 381, and shall be done under FSIS inspection. The commodity shall not be processed or packaged more than 60 days prior to the first date of the delivery period for each sales order. Frozen commodity when specified in the Solicitation, shall be processed, packaged and packed, and placed in a freezer within 7 calendar days after the date of harvest. Product must be produced under FSIS pathogen reduction standards, as specified in 9 CFR § 381. Boneless, skinless breasts must be free of cartilage, fat, holes, tendons, bone pieces, blood clots, bruises, cuts, tears, and muscle mutilations. Slight discolorations is permitted, provided it does not detract from the appearance of the product. Unbreaded. – All packaging materials shall comply with FSIS regulations (9 CFR § 381.144 Packaging Materials). All packaging and packing materials must be clean and in new condition, shall not impart objectionable odors or flavors to the commodity, shall be safe for use in contact with food products (cannot adulterate product or be injurious to health). Packed in poly bag boxes. Polyethylene-film Bags – Shall have a wall thickness of not less than 2 mil; and shall protect the commodity from dehydration, freezer burn, or quality deterioration during the conditions of use. Frozen commodity showing any evidence of defrosting, refreezing, or freezer deterioration shall be rejected for use under this FPPS. Products produced or labeled with any phrase “under religious exemption” will be refused. No Sodium added. Size of chicken breast, 5 -7 ounce. Note size on the bid PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 10,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	10,000	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0151	Meats, Chicken, Boneless, Skinless, Raw, White Meat (Tender or Breast Meat), Frozen, A quality per the USDA, United States Classes, Standards, and Grades for Poultry Agricultural Marketing Service (AMS) 70.200 et seq. Boneless, skinless breasts must be free of cartilage and fat. Boneless breasts (excluding the attached tenderloin) must be free of tendons. Tendons normally associated with tenderloins are permitted. Tenderloins or boneless, skinless parts must be free of blood clots, bruises, cuts, tears, and holes in the muscle tissue. Slight discolorations and separation of the muscle tissue is permitted on boneless, skinless parts, provided it does not detract from the appearance of the product. Boneless, skinless parts may be diced. The dicing process must result in size-reduced portions of meat that are intact, not mutilated, and with surfaces relatively smooth in appearance. Individual size-reduced portions of meat must be relatively uniform in size and shape, and consistent with the size reduction process. Unbreaded. Packed in poly bag boxes. Polyethylene-film Bags – Shall have a wall thickness of not less than 2 mil; and shall protect the commodity from dehydration, freezer burn, or quality deterioration during the conditions of use. All packaging and packing materials must be clean and in new condition. Products produced or labeled with any phrase “under religious exemption” will be refused	10,000	LB	\$ _____	\$ _____

	PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 10,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0156	Meats, Fish Fillets, Raw, Individually Quick Frozen, Unglazed, Skin-on, Skin-on (white side only), or Skin-off (skinless), Practically boneless fillet. U.S. Grade A or B. Acceptable types include Tilapia, Cod, Haddock, or Flounder. (Grade Standards are separate for Cod, Flounder, and Haddock and must comply with those standards). Fillets are slices of practically boneless fish flesh of irregular size and shape, which are removed from the carcass by cuts made parallel to the backbone and sections of such fillets cut so as to facilitate packing. 100% net weight, No water or glaze weight added. Fish portion must meet weight requirements when thawed and drained, Delivered cases must be labeled 100% net weight. Manufacturer's letters will not be accepted in lieu of labeling. Note type and size on bid. 4 to 7 oz. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 7,500.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	7,500	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0157	Meats, Italian Sausage, Pork , Pork and Turkey (pork is predominant) or Pork and Chicken (pork is predominant), Sweet, Links, 3.8 - 5 ounce range. Italian sausage is a fresh, uncooked, linked product. The meat components must be chopped or ground to a moderately course texture. The sausage itself (or interior cut surface of links) is moderately coarse in texture with a uniform color ranging from medium to dark reddish-brown with evenly distributed fat particles. The use of artificial colors in the manufacture of any sausage item is not permitted. The use of ingredients, method of addition, and product labeling shall comply with the Food Safety and Inspection Service's (FSIS) Regulations and Policies. The purchaser maintains the right to verify the amounts of added ingredients using approved testing methods. Fat content shall be declared on the product label along with a nutrition facts panel in accordance with FSIS regulations. Links must be moderately uniform in length and diameter. Packaging: layers one link deep will be separated with waxed paper or sheets of plastic material used for this purpose. IMPS 818, Italian Sausage, Formula D, P2, or P3, Flavoring C – Sweet (Contains increased amounts of sugar or sweetener), Type E - Linked, Casing Option B - Hog, Linked (Natural) or D - Collagen Casings (Edible). Product will be delivered frozen. Product will not contain SOY. Specify portion size on bid	2,000	LB	\$ _____	\$ _____

	PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 2,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0158	Meats, Pork Roast, Pork Shoulder, Boston Butt, Boneless, Raw, IMPS 406A, Frozen, No Paper Wrapping, Weight Range A or B, 4 to 10 lb. Quote MUST indicate average roast weight of quoted item PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 4,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	4,000	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0164	Cheese, Cheddar, U.S. Grade AA or A, CID-A-A-20208C, Type I - Cheddar cheese (21 Code of Federal Regulations (CFR) §133.113), Style D - Shredded, frozen (5 lb) box, K - Other (Shredded, frozen, 10 lb to 40 lb) box, Shred size 1, 2, or 3, Agricultural practice (a) - Conventional. "Cheddar cheese" is cheese made by the cheddaring process or by another procedure which produces a finished cheese having the same physical and chemical properties as the cheese produced by the cheddar process and is made from cow's milk with or without the addition of coloring matter and with common salt, contains not more than 39 percent of moisture, and in the water-free substance, contains not less than 50 percent of milk fat and conforms to the provisions of §19.500, "Definitions and Standards of Identity for Cheese and Cheese Products." Food and Drug Administration (21 CFR 133.113). Manufacturer's letters will NOT be accepted in lieu of labeling. Packaging: 5 lb to 40 lb sealed Bags or containers. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 2,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	2,000	LB	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0165	Cheese, Mozzarella, Low-moisture Mozzarella, Part-skim Mozzarella. Low-moisture Part-skim Mozzarella. (CID-A-A-20248C) The mozzarella cheese must conform to the following list. Type I, II, III, or IV. Style J - Other (Shredded, individually quick frozen (IQF) - (5 lb to 40 lb) box). Shred size 1,2, or 3. Agricultural practice a. Milk fat range between 30.0 to 45.0 to 60.0 % on a dry basis depending on type. Moisture content range between 45.0 to 60.0 % depending on type. All ingredients must be declared by their common or usual name in descending order of predominance by weight. Manufacturer's letters will NOT be accepted in lieu of labeling. Type and Style to be determined locally and size noted on bid. Packaging of Primary Container: 5 lb to 40 lb sealed Bags or containers PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 3,120.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	3,120	LB	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0166	Cheese, Parmesan or Parmesan and Romano Mixed, Grated, Italian Style, 12-1 lb containers per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 103.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	103	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0170	Dairy, Cottage Cheese, Cultured or Acidified, Low Fat (2%), Fat Free, Cottage Cheese, or No Salt Added Low Fat Types, Unflavored, Small or Large Curd, Once the cottage cheese is packaged, the cottage cheese must have a remaining shelf life of at least 60 days. (CID A-A-20154C, Group I or II, Style A or B, Types 2, 3, 4, or 5, Flavor (a), Packaging size (7) - Other (as specified by purchaser), Agricultural practice (a). Note type and package size on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 220.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup	220	CO	\$ _____	\$ _____

	2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0171	Dairy, Cream, Pasteurized, Sour Cream, Reduced Fat Sour Cream, Low-fat Sour Cream, or Nonfat Sour Cream, No Flavor. (CID A-A-20251, Group I, Type F, H, I, or J, No Flavor). Note type and package size on bid. PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 100.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	100	CO	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0174	Bread, Roll, Enriched, Finger (Hot Dog), Whole wheat, Pan Baked, Sliced, Fresh, Seedless. (CID A-A-20053C, Type I - Meet the standard for enrichment in 21 Code of Federal Regulations (CFR) §136.115, Enriched bread, rolls, and buns, Class of Roll D - Finger (hot dog), Style of roll 4 - Other (as specified by the purchaser) Whole wheat, Bake Type a - Pan baked, Slice Type 1) - Sliced, Product State a) - Fresh (21 CFR §101.95), Seed type (1) - Seedless, Agricultural practice (i) - Conventional). Fresh bread shall be delivered within 48 hours after baking. State package size on bid. BASED ON 12 COUNT PACKAGE PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 2,800.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	2,800	PG	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0175	Bread, Roll, Enriched, Sandwich (Hamburger), Whole Wheat, Pan Baked, Sliced, Fresh, Seedless. (CID A-A-20053C, Type I - Meet the standard for enrichment in 21 Code of Federal Regulations (CFR) §136.115, Enriched bread, rolls, and buns, Class of Roll C - Sandwich (hamburger), Style of Roll 2 - Whole wheat, Bake Type a - Pan baked, Slice Type 1) - Sliced, Product State a) - Fresh (21 CFR §101.95), Seed type (1) - Seedless, Agricultural practice (i) - Conventional). Fresh bread shall be delivered within 48 hours after baking. State type and package size on bid. BASED ON 12 COUNT PACKAGE PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule:	5,600	PG	\$ _____	\$ _____

	Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 5,600.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0176	Bread, Whole Wheat, Unseasoned, Fresh, Any Loaf Size, Pan Baked, Sandwich, Sliced, Enriched, Seedless. (CID A-A-20052C, Type II - Whole Wheat (21 CFR §136.180), Product State 1 - Fresh (21 CFR §101.95), Loaf Size a, b, c, d, e, or f- Other (as specified by the purchaser), Bake Type 1) -Pan baked, Shape a) - Round top or Shape b) - Sandwich, Slice Type (1) - Sliced, Enrichment Type (a)-Meet the standard for enrichment in 21 CFR §136.115, Enriched bread, rolls, and buns, Seed Type (ii) - Seedless, Agricultural practice i) - Conventional). Fresh bread shall be delivered within 48 hours after baking. State type and loaf size on bid. WW BREAD, SLICES, 26 OZ. (26 SL) LOAF. CERTIFIED KOSHER PARVE PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 11,000.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	11,000	EA	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0179	Eggs, Shell, Whole, Fresh, U.S. Grade A, Medium, 30 Dozen per case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 562.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	562	CS	\$ _____	\$ _____
ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0182	Eggs, Pasteurized, Liquid, Frozen. Specify case size on bid.- 30lb case requested PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026	29,520	LB	\$ _____	\$ _____

	Quantity: 562.000000				
	Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov				

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0229	Aprons, Disposable, 1000 ct case PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 51.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	51	CS	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0230	Beard Covers, Case, 1000 ct PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0231	Hair Nets, Case, 1000 ct PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026 Delivery Schedule: Delivery Description: Delivery Number: 1 Delivery Required On: 07/31/2026 Quantity: 56.000000 Delivery Address: Federal Bureau of Prisons FCI Jesup 2600 HIGHWAY 301 SOUTH Jesup, GA 31599 Attn: Food Svs. Warehouse JES-FoodSvcs@bop.gov	56	CS	\$ _____	\$ _____

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0232	Cornstarch, Powdered, Unmodified, regular, native or common, fine or coarse powder PSC: 8945 Line Period of Performance: 07/01/2026 - 09/30/2026	300	LB	\$ _____	\$ _____

Delivery Schedule:**Delivery Description:**

Delivery Number: 1

Delivery Required On: 07/31/2026

Quantity: 300.000000

Delivery Address: Federal Bureau of Prisons

FCI Jesup

2600 HIGHWAY 301 SOUTH

Jesup, GA 31599

Attn: Food Svs. Warehouse

JES-FoodSvcs@bop.gov

Section 2 - Contract Clauses

Clauses By Full Text

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)

(a) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at 41 U.S.C. 4712 and Federal Acquisition Regulation (FAR) 3.900 through 3.905.

(b) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower rights and protections under 41 U.S.C. 4712, as described in FAR 3.900 through 3.905.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts.

(End of clause)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

(a) *Definitions.* As used in this clause--

"Internal confidentiality agreement or statement" means a confidentiality agreement or any other written statement that the contractor requires any of its employees or subcontractors to sign regarding nondisclosure of contractor information, except that it does not include confidentiality agreements arising out of civil litigation or confidentiality agreements that contractor employees or subcontractors sign at the behest of a Federal agency.

"Subcontract" means any contract as defined in subpart 2.1 entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract. It includes but is not limited to purchase orders, and changes and modifications to purchase orders.

"Subcontractor" means any supplier, distributor, vendor, or firm (including a consultant) that furnishes supplies or services to or for a prime contractor or another subcontractor.

(b) The Contractor shall not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(c) The Contractor shall notify current employees and subcontractors that prohibitions and restrictions of any preexisting internal confidentiality agreements or statements covered by this clause, to the extent that such prohibitions and restrictions are inconsistent with the prohibitions of this clause, are no longer in effect.

(d) The prohibition in paragraph (b) of this clause does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(e) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015, (Pub. L. 113-235), and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions) use of funds appropriated (or otherwise made available) is prohibited, if the Government determines that the Contractor is not in compliance with the provisions of this clause.

(f) The Contractor shall include the substance of this clause, including this paragraph (f), in subcontracts under such contracts.

(End of clause)

52.209-6 (DEV) Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) (DEVIATION NOV 2025)

(a) *Definition.* As used in this clause—

Commercially available off-the-shelf (COTS) item

(1) Means any item of supply (including construction material) that is—

(i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” in Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

(b) The Government suspends or debars Contractors to protect the Government's interests. Other than a subcontract for a commercially available off-the-shelf item, the Contractor shall not enter into any subcontract, in excess of the threshold specified in FAR 9.405-2(b) on the date of subcontract award, with a Contractor that is debarred, suspended, or proposed for debarment by any executive agency unless a compelling reason exists to do so.

(c) The Contractor shall require each proposed subcontractor whose subcontract will exceed the threshold specified in FAR 9.405-2(b) on the date of subcontract award, other than a subcontractor providing a commercially available off-the-shelf item, to disclose to the Contractor, in writing, whether as of the time of award of the subcontract, the subcontractor, or its principals, is or is not debarred, suspended, proposed for debarment, or voluntarily excluded by the Federal Government.

(d) A corporate officer or a designee of the Contractor shall notify the Contracting Officer, in writing, before entering into a subcontract with a party (other than a subcontractor providing a commercially available off-the-shelf item) that is debarred, suspended, proposed for debarment, or voluntarily excluded (see FAR 9.404 for information on the System for Award Management (SAM) Exclusions). The notice must include the following:

(1) The name of the subcontractor.

(2) The Contractor's knowledge of the reasons for the subcontractor being listed with an exclusion in SAM.

(3) The compelling reason(s) for doing business with the subcontractor notwithstanding its being listed with an exclusion in SAM.

(4) The systems and procedures the Contractor has established to ensure that it is fully protecting the Government's interests when dealing with such subcontractor in view of the specific basis for the party's debarment, suspension, proposed debarment, or voluntary exclusion.

(e) *Subcontracts.* Unless this is a contract for the acquisition of commercial products or commercial services, the Contractor shall include the requirements of this clause, including this paragraph (e) (appropriately modified for the identification of the parties), in each subcontract that—

(1) Exceeds the threshold specified in FAR 9.405-2(b) on the date of subcontract award; and

(2) Is not a subcontract for commercially available off-the-shelf items.

(End of clause)

52.209-10 (DEV) Prohibition on Contracting With Inverted Domestic Corporations (Nov 2015) (DEVIATION NOV 2025)

(a) *Definitions.* As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

- (1) Directly by a parent corporation; or
- (2) Through another subsidiary of a parent corporation.

(b) If the contractor reorganizes as an inverted domestic corporation or becomes a subsidiary of an inverted domestic corporation at any time during the period of performance of this contract, applicable law may prohibit the Government from paying for Contractor activities performed after the date when it becomes an inverted domestic corporation or subsidiary. The Government may seek any available remedies in the event the Contractor fails to perform in accordance with the terms and conditions of the contract as a result of Government action under this clause.

(c) Exceptions to this prohibition are located at 9.108-3.

(d) In the event the Contractor becomes either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation during contract performance, the Contractor shall give written notice to the Contracting Officer within five business days from the date of the inversion event.

(End of clause)

52.222-3 (DEV) Convict Labor (June 2003) (DEVIATION DEC 2025)

(a) Except as provided in paragraph (b) of this clause, the Contractor must not employ in the performance of this contract any person undergoing a sentence of imprisonment imposed by any court of a State, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, or the U.S. Virgin Islands.

(b) The Contractor is not prohibited from employing persons—

- (1) On parole or probation to work at paid employment during the term of their sentence;
- (2) Who have been pardoned or who have served their terms; or
- (3) Confined for violation of the laws of any of the States, the District of Columbia, Puerto Rico, the Northern Mariana Islands, American Samoa, Guam, or the U.S. Virgin Islands who are authorized to work at paid employment in the community under the laws of such jurisdiction, if-
 - (i) The worker is paid or is in an approved work training program on a voluntary basis;
 - (ii) Representatives of local union central bodies or similar labor union organizations have been consulted;
 - (iii) Such paid employment will not result in the displacement of employed workers, or be applied in skills, crafts, or trades in which there is a surplus of available gainful labor in the locality, or impair existing contracts for services;
 - (iv) The rates of pay and other conditions of employment will not be less than those paid or provided for work of a similar nature in the locality in which the work is being performed; and
 - (v) The Attorney General of the United States has certified that the work-release laws or regulations of the jurisdiction involved are in conformity with the requirements of Executive Order 11755, as amended by Executive Orders 12608 and 12943.

(End of clause)

52.222-19 (DEV) Child Labor-Cooperation with Authorities and Remedies (Jan 2025) (DEVIATION MAR 2026)

(a) *Applicability.* This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in-

(1) Israel, and the anticipated value of the acquisition is \$50,000 or more;

(2) Mexico, and the anticipated value of the acquisition is \$105,767 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) *Cooperation with Authorities.* To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) *Violations.* The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

52.222-36 (DEV) Equal Opportunity for Workers with Disabilities (Jun 2020) (DEVIATION DEC 2025)

(a) Equal opportunity clause. The Contractor must abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

(b) Subcontracts. The Contractor must include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1401-2(a)(1) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor must act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

52.222-40 (DEV) Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (DEVIATION DEC 2025)

(a) During the term of this contract, the Contractor must post an employee notice, of such size and in such form, and containing such content as prescribed by the Secretary of Labor, in conspicuous places in and about its plants and offices where employees covered by the National Labor Relations Act engage in activities relating to the performance of the contract, including all places where notices to employees are customarily posted both physically and electronically, in the languages employees speak, in accordance with 29 CFR 471.2 (d) and (f).

(1) Physical posting of the employee notice must be in conspicuous places in and about the Contractor's plants and offices so that the notice is prominent and readily seen by employees who are covered by the National Labor Relations Act and engage in activities related to the performance of the contract.

(2) If the Contractor customarily posts notices to employees electronically, then the Contractor must also post the required notice electronically by displaying prominently, on any Web site that is maintained by the Contractor and is customarily used for notices to employees about terms and conditions of employment, a link to the Department of Labor's Web site that contains the full text of the poster. The link to the Department's Web site, as referenced in (b)(3) of this section, must read, "Important Notice about Employee Rights to Organize and Bargain Collectively with Their Employers."

(b) This required employee notice, printed by the Department of Labor, may be-

(1) Obtained from the Division of Interpretations and Standards, Office of Labor-Management Standards, U.S. Department of Labor, 200 Constitution Avenue, NW., Room N-5609, Washington, DC 20210, (202) 693-0123, or from any field office of the Office of Labor-Management Standards or Office of Federal Contract Compliance Programs;

(2) Provided by the Federal contracting agency if requested;

(3) Downloaded from the Office of Labor-Management Standards Web site at <http://www.dol.gov/olms/regs/compliance/EO13496.htm>; or

(4) Reproduced and used as exact duplicate copies of the Department of Labor's official poster.

(c) The required text of the employee notice referred to in this clause is located at Appendix A, Subpart A, 29 CFR Part 471.

(d) The Contractor must comply with all provisions of the employee notice and related rules, regulations, and orders of the Secretary of Labor.

(e) In the event that the Contractor does not comply with the requirements set forth in paragraphs (a) through (d) of this clause, this contract may be terminated or suspended in whole or in part, and the Contractor may be suspended or debarred in accordance with 29 CFR 471.14 and subpart 9.4. Such other sanctions or remedies may be imposed as are provided by 29 CFR part 471, which implements Executive Order 13496 or as otherwise provided by law.

(f) Subcontracts. (1) The Contractor must include the substance of this clause, including this paragraph (f), in every subcontract that exceeds \$10,000 and will be performed wholly or partially in the United States, unless exempted by the rules, regulations, or orders of the Secretary of Labor issued pursuant to section 3 of Executive Order 13496 of January 30, 2009, so that such provisions will be binding upon each subcontractor.

(2) The Contractor must not procure supplies or services in a way designed to avoid the applicability of Executive Order 13496 or this clause.

(3) The Contractor must take such action with respect to any such subcontract as may be directed by the Secretary of Labor as a means of enforcing such provisions, including the imposition of sanctions for noncompliance.

(4) However, if the Contractor becomes involved in litigation with a subcontractor, or is threatened with such involvement, as a result of such direction, the Contractor may request the United States, through the Secretary of Labor, to enter into such litigation to protect the interests of the United States.

(End of clause)

52.222-50 (DEV) Combating Trafficking in Persons (Oct 2025) (DEVIATION DEC 2025)

(a) *Definitions.* As used in this clause-

Agent means any individual, including a director, an officer, an employee, or an independent contractor, authorized to act on behalf of the organization.

Coercion means-

- (1) Threats of serious harm to or physical restraint against any person;
- (2) Any scheme, plan, or pattern intended to cause a person to believe that failure to perform an act would result in serious harm to or physical restraint against any person; or
- (3) The abuse or threatened abuse of the legal process.

Commercial sex act means any sex act on account of which anything of value is given to or received by any person.

Commercially available off-the-shelf (COTS) item —

- (1) Means any item of supply (including construction material) that is—
 - (i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101;
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in 46.U.S.C. 40102(4), such as agricultural products and petroleum products.

Debt bondage means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined.

Employee means an employee of a Contractor directly engaged in the performance of work under the contract who has other than a minimal impact or involvement in contract performance.

Forced Labor means knowingly providing or obtaining the labor or services of a person-

- (1) By threats of serious harm to, or physical restraint against, that person or another person;

(2) By means of any scheme, plan, or pattern intended to cause the person to believe that, if the person did not perform such labor or services, that person or another person would suffer serious harm or physical restraint; or

(3) By means of the abuse or threatened abuse of law or the legal process.

Involuntary servitude includes a condition of servitude induced by means of-

(1) Any scheme, plan, or pattern intended to cause a person to believe that, if the person did not enter into or continue in such conditions, that person or another person would suffer serious harm or physical restraint; or

(2) The abuse or threatened abuse of the legal process.

Recruitment fees means fees of any type, including charges, costs, assessments, or other financial obligations, that are associated with the recruiting process, regardless of the time, manner, or location of the imposition or collection of the fee.

(1) Recruitment fees include, but are not limited to, the following fees (when they are associated with the recruiting process) for-

(i) Soliciting, identifying, considering, interviewing, referring, retaining, transferring, selecting, training, providing orientation to, skills testing, recommending, or placing employees or potential employees;

(ii) Advertising;

(iii) Obtaining permanent or temporary labor certification, including any associated fees;

(iv) Processing applications and petitions;

(v) Acquiring visas, including any associated fees;

(vi) Acquiring photographs and identity or immigration documents, such as passports, including any associated fees;

(vii) Accessing the job opportunity, including required medical examinations and immunizations; background, reference, and security clearance checks and examinations; and additional certifications;

(viii) An employer's recruiters, agents or attorneys, or other notary or legal fees;

(ix) Language interpretation or translation, arranging for or accompanying on travel, or providing other advice to employees or potential employees;

(x) Government-mandated fees, such as border crossing fees, levies, or worker welfare funds;

(xi) Transportation and subsistence costs-

(A) While in transit, including, but not limited to, airfare costs or other modes of transportation, terminal fees, and travel taxes associated with travel from the country of origin to the country of performance and the return journey upon the end of employment; and

(B) From the airport or disembarkation point to the worksite;

(xii) Security deposits, bonds, and insurance; and

(xiii) Equipment charges.

(2) A recruitment fee, as described in the introductory text of this definition, is a recruitment fee, regardless of whether the payment is-

- (i) Paid in property or money;
- (ii) Deducted from wages;
- (iii) Paid back in wage or benefit concessions;
- (iv) Paid back as a kickback, bribe, in-kind payment, free labor, tip, or tribute; or
- (v) Collected by an employer or a third party, whether licensed or unlicensed, including, but not limited to-
 - (A) Agents;
 - (B) Labor brokers;
 - (C) Recruiters;
 - (D) Staffing firms (including private employment and placement firms);
 - (E) Subsidiaries/affiliates of the employer;
 - (F) Any agent or employee of such entities; and
 - (G) Subcontractors at all tiers.

Severe forms of trafficking in persons means-

- (1) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
- (2) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

Sex trafficking means the recruitment, harboring, transportation, provision, or obtaining of a person for the purpose of a commercial sex act.

Subcontract means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

Subcontractor means any supplier, distributor, vendor, or firm that furnishes supplies or services to or for a prime contractor or another subcontractor.

United States means the 50 states, the District of Columbia, and outlying areas.

(b) *Policy.* The United States Government has adopted a policy prohibiting trafficking in persons including the trafficking-related activities of this clause. Contractors, contractor employees, and their agents must not—

- (1) Engage in severe forms of trafficking in persons during the period of performance of the contract;
- (2) Procure commercial sex acts during the period of performance of the contract;
- (3) Use forced labor in the performance of the contract;
- (4) Destroy, conceal, confiscate, or otherwise deny access by an employee to the employee's identity or immigration documents, such as passports or drivers' licenses, regardless of issuing authority;
- (5) (i) Use misleading or fraudulent practices during the recruitment of employees or offering of employment, such as failing to disclose, in a format and language understood by the employee or potential employee, basic information or making material misrepresentations during the recruitment of employees

regarding the key terms and conditions of employment, including wages and fringe benefits, the location of work, the living conditions, housing and associated costs (if employer or agent provided or arranged), any significant costs to be charged to the employee or potential employee, and, if applicable, the hazardous nature of the work;

(ii) Use recruiters that do not comply with local labor laws of the country in which the recruiting takes place;

(6) Charge employees or potential employees recruitment fees;

(7) (i) Fail to provide return transportation or pay for the cost of return transportation upon the end of employment-

(A) For an employee who is not a national of the country in which the work is taking place and who was brought into that country for the purpose of working on a U.S. Government contract or subcontract (for portions of contracts performed outside the United States); or

(B) For an employee who is not a United States national and who was brought into the United States for the purpose of working on a U.S. Government contract or subcontract, if the payment of such costs is required under existing temporary worker programs or pursuant to a written agreement with the employee (for portions of contracts performed inside the United States); except that—

(ii) The requirements of paragraphs (b)(7)(i) of this clause must not apply to an employee who is—

(A) Legally permitted to remain the country of employment and who chooses to do so; or

(B) Exempted by an authorized official of the contracting agency from the requirement to provide return transportation or pay for the cost of return transportation;

(iii) The requirements of paragraph (b)(7)(i) of this clause are modified for a victim of trafficking in persons who is seeking victim services or legal redress in the country of employment, or for a witness in an enforcement action related to trafficking in persons. The contractor must provide the return transportation or pay the cost of return transportation in a way that does not obstruct the victim services, legal redress, or witness activity. For example, the contractor must not only offer return transportation to a witness at a time when the witness is still needed to testify. This paragraph does not apply when the exemptions at paragraph (b)(7)(ii) of this clause apply.

(8) Provide or arrange housing that fails to meet the host country housing and safety standards; or

(9) If required by law or contract, fail to provide an employment contract, recruitment agreement, or other required work documents in writing. Such written work document must be in a language the employee understands. If the employee must relocate to perform the work, the work document must be provided to the employee at least five days prior to the employee relocating. The employee's work document must include, but is not limited to, details about work description, wages, prohibition on charging recruitment fee, work location(s), living accommodations and associated costs, time off, roundtrip transportation arrangements, grievance process, and the content of applicable laws and regulations that prohibit trafficking in persons.

(c) *Contractor requirements.* The Contractor must-

(1) Notify its employees and agents of-

(i) The United States Government's policy prohibiting trafficking in persons, described in paragraph (b) of this clause; and

(ii) The actions that will be taken against employees or agents for violations of this policy. Such actions for employees may include, but are not limited to, removal from the contract, reduction in benefits, or termination of employment; and

(2) Take appropriate action, up to and including termination, against employees, agents, or subcontractors that violate the policy in paragraph (b) of this clause.

(d) *Notification.* (1) The Contractor must inform the Contracting Officer and the agency Inspector General immediately of—

(i) Any credible information it receives from any source (including host country law enforcement) that alleges a Contractor employee, subcontractor, subcontractor employee, or their agent has engaged in conduct that violates this policy in paragraph (b) of this clause (see also 18 U.S.C. 1351, Fraud in Foreign Labor Contracting, and 52.203-13(b)(3)(i)(A), if that clause is included in the solicitation or contract, which requires disclosure to the agency Office of the Inspector General when the Contractor has credible evidence of fraud); and

(ii) Any actions taken against a Contractor employee, subcontractor, subcontractor employee, or their agent pursuant to this clause.

(2) If the allegation may be associated with more than one contract, the Contractor must inform the contracting officer for the contract with the highest dollar value.

(e) *Remedies.* In addition to other remedies available to the Government, the Contractor's failure to comply with the requirements of paragraphs (c), (d), (g), (h), or (i) of this clause may result in—

(1) Requiring the Contractor to remove a Contractor employee or employees from the performance of the contract;

(2) Requiring the Contractor to terminate a subcontract;

(3) Suspension of contract payments until the Contractor has taken appropriate remedial action;

(4) Loss of award fee, consistent with the award fee plan, for the performance period in which the Government determined Contractor non-compliance;

(5) Declining to exercise available options under the contract;

(6) Termination of the contract for default or cause, in accordance with the termination clause of this contract; or

(7) Suspension or debarment.

(f) *Mitigating and aggravating factors.* When determining remedies, the Contracting Officer may consider the following:

(1) *Mitigating factors.* The Contractor had a Trafficking in Persons compliance plan or an awareness program at the time of the violation, was in compliance with the plan, and has taken appropriate remedial actions for the violation, that may include reparation to victims for such violations.

(2) *Aggravating factors.* The Contractor failed to abate an alleged violation or enforce the requirements of a compliance plan, when directed by the Contracting Officer to do so.

(g) *Full cooperation.* (1) The Contractor must, at a minimum—

(i) Disclose to the agency Inspector General information sufficient to identify the nature and extent of an offense and the individuals responsible for the conduct;

(ii) Provide the timely and complete responses to Government auditors' and investigators' requests for documents;

(iii) Cooperate fully in providing reasonable access to its facilities and staff (both inside and outside the U.S.) to allow contracting agencies and other responsible Federal agencies to conduct audits, investigations, or other actions to ascertain compliance with the Trafficking Victims Protection Act of 2000 (22 U.S.C. chapter 78), E.O. 13627, or any other applicable law or regulation establishing restrictions on trafficking in persons, the procurement of commercial sex acts, or the use of forced labor; and

(iv) Protect all employees suspected of being victims of or witnesses to prohibited activities, prior to returning to the country from which the employee was recruited, and shall not prevent or hinder the ability of these employees from cooperating fully with Government authorities.

(2) The requirement for full cooperation does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not-

(i) Require the Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine;

(ii) Require any officer, director, owner, employee, or agent of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; or

(iii) Restrict the Contractor from—

(A) Conducting an internal investigation; or

(B) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

(h) *Compliance plan.* (1) This paragraph (h) applies to any portion of the contract that—

(i) Is for supplies, other than commercially available off-the-shelf items, acquired outside the United States, or services to be performed outside the United States; and

(ii) Has an estimated value that exceeds \$500,000.

(2) The Contractor shall maintain a compliance plan during the performance of the contract that is appropriate—

(i) To the size and complexity of the contract; and

(ii) To the nature and scope of the activities to be performed for the Government, including the number of non-United States citizens expected to be employed and the risk that the contract or subcontract will involve services or supplies susceptible to trafficking in persons.

(3) *Minimum requirements.* The compliance plan must include, at a minimum, the following:

(i) An awareness program to inform contractor employees about the Government's policy prohibiting trafficking-related activities described in paragraph (b) of this clause, the activities prohibited, and the actions that will be taken against the employee for violations. Additional information about Trafficking in Persons and examples of awareness programs can be found at the website for the Department of State's Office to Monitor and Combat Trafficking in Persons at <http://www.state.gov/j/tip/>.

(ii) A process for employees to report, without fear and retaliation, activity inconsistent with the policy prohibiting trafficking in persons, including a means to make available to all employees the hotline phone number of the Global Human Trafficking Hotline at 1-844-888-FREE and its email address at help@befree.org.

(iii) A recruitment and wage plan that only permits the use of retirement companies with trained employees, prohibits charging recruitment fees to the employee or potential employee, and ensures that wages meet applicable host-country legal requirements or explains any variance.

(iv) A housing plan, if the Contractor or subcontractor intends to provide or arrange housing, that ensures that the housing needs meets host-country housing and safety standards.

(v) Procedures to prevent agents and subcontractors at any tier and at any dollar value from engaging in trafficking in persons (including activities in paragraph (b) of this clause) and to monitor, detect, and terminate any agents, subcontracts, or subcontractor employees that have engaged in such activities.

(4) *Posting.* (i) The Contractor must post the relevant contents of the compliance plan, no later than the initiation of contract performance, at the workplace (unless the work is to be performed in the field or not in a fixed location) and on the Contractor's Web site (if one is maintained). If posting at the workplace or on the Web site is impracticable, the Contractor must provide the relevant contents of the compliance plan to each worker in writing.

(ii) The Contractor must provide the compliance plan to the Contracting Officer upon request.

(5) *Certification.* Annually after receiving an award, the Contractor must submit a certification to the Contracting Officer that—

(i) It has implemented a compliance plan to prevent any prohibited activities identified at paragraph (b) of this clause and to monitor, detect, and terminate any agent, subcontract or subcontractor employee engaging in prohibited activities; and

(ii) After having conducted due diligence, either—

(A) To the best of the Contractor's knowledge and belief, neither it nor any of its agents, subcontractors, or their agents is engaged in any such activities; or

(B) If abuses relating to any of the prohibited activities identified in paragraph (b) of this clause have been found, the Contractor or subcontractor has taken the appropriate remedial and referral actions.

(i) *Subcontracts.* (1) The Contractor must include the substance of this clause, including this paragraph (i), in all subcontracts and in all contracts with agents. The requirements in paragraph (h) of this clause apply only to any portion of the subcontract that—

(i) Is for supplies, other than commercially available off-the-shelf items, acquired outside the United States, or services to be performed outside the United States; and

(ii) Has an estimated value that exceeds \$550,000.

(2) If any subcontractor is required by this clause to submit a certification, the Contractor must require submission prior to the award of the subcontract and annually thereafter. The certification must cover the items in paragraph (h)(5) of this clause.

(End of clause)

52.223-23 (DEV) Sustainable Products (May 2024) (DEVIATION DEC 2025)

(a) *Definitions.* As used in this clause—

Sustainable product means—

(1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products>, <https://www.energystar.gov/products?s=mega>, and <https://www.energy.gov/femp/low-standby-power-product-list>).

(3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR Part 4270) (<https://www.biopreferred.gov/>).

(4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables>).

(b) *Requirements.* The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are—

- (1) Delivered to the Government;
- (2) Furnished for use by the Government;
- (3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of clause)

52.225-1 (DEV) Buy American-Supplies (Oct 2022) (DEVIATION DEC 2025)

(a) *Definitions.* As used in this clause--

Commercially available off-the-shelf (COTS) item--

- (1) Means any item of supply (including construction material) that is—
 - (i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into an end product.

Cost of components means--

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the end product (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the end product.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Domestic end product means--

- (1) For an end product that does not consist wholly or predominantly of iron or steel or a combination of both-
 - (i) An unmanufactured end product mined or produced in the United States;
 - (ii) An end product manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind as those that the agency determines are not mined, produced, or manufactured in sufficient and reasonably available commercial quantities of a satisfactory quality are treated as domestic. Components of unknown origin are treated as foreign. Scrap generated, collected, and prepared for processing in the United States is considered domestic; or

(B) The end product is a COTS item; or

(2) For an end product that consists wholly or predominantly of iron or steel or a combination of both, an end product manufactured in the United States, if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all the components used in the end product. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the end product and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the end product contains multiple components, the cost of all the materials used in such end product is calculated in accordance with the definition of "cost of components".

End product means those articles, materials, and supplies to be acquired under the contract for public use.

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign end product means an end product other than a domestic end product.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

(b) 41 U.S.C. chapter 83, Buy American, provides a preference for domestic end products for supplies acquired for use in the United States. In accordance with 41 U.S.C. 1907, the domestic content test of the Buy American statute is waived for an end product that is a COTS item, except that for an end product that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the end product, excluding COTS fasteners.

(c) Offerors may obtain from the Contracting Officer a list of foreign articles that the Contracting Officer will treat as domestic for this contract.

(d) The Contractor shall deliver only domestic end products except to the extent that it specified delivery of foreign end products in the provision of the solicitation entitled "Buy American Certificate."

(End of clause)

"Driving"--

(1) Means operating a motor vehicle on an active roadway with the motor running, including while temporarily stationary because of traffic, a traffic light, stop sign, or otherwise.

(2) Does not include operating a motor vehicle with or without the motor running when one has pulled over to the side of, or off, an active roadway and has halted in a location where one can safely remain stationary.

Text messaging means reading from or entering data into any handheld or other electronic device, including for the purpose of short message service texting, e-mailing, instant messaging, obtaining navigational information, or engaging in any other form of electronic data retrieval or electronic data communication. The term does not include glancing at or listening to a navigational device that is secured in a commercially designed holder affixed to the vehicle, provided that the destination and route are programmed into the device either before driving or while stopped in a location off the roadway where it is safe and legal to park.

(b) This clause implements Executive Order 13513, Federal Leadership on Reducing Text Messaging While Driving, dated October 1, 2009.

(c) The Contractor is encouraged to--

(1) Adopt and enforce policies that ban text messaging while driving--

(i) Company-owned or rented vehicles or Government-owned vehicles; or

(ii) Privately-owned vehicles when on official Government business or when performing any work for or on behalf of the Government.

(2) Conduct initiatives in a manner commensurate with the size of the business, such as--

(i) Establishment of new rules and programs or reevaluation of existing programs to prohibit text messaging while driving; and

(ii) Education, awareness, and other outreach to employees about the safety risks associated with texting while driving.

(d) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts that exceed the micro-purchase threshold, as defined in Federal Acquisition Regulation 2.101 on the date of subcontract award.

(End of clause)

52.232-33 Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)

(a) *Method of payment*.

(1) All payments by the Government under this contract shall be made by electronic funds transfer (EFT), except as provided in paragraph (a)(2) of this clause. As used in this clause, the term "EFT" refers to the funds transfer and may also include the payment information transfer.

(2) In the event the Government is unable to release one or more payments by EFT, the Contractor agrees to either--

(i) Accept payment by check or some other mutually agreeable method of payment; or

(ii) Request the Government to extend the payment due date until such time as the Government can make payment by EFT (but see paragraph (d) of this clause).

(b) *Contractor's EFT information*. The Government shall make payment to the Contractor using the EFT information contained in the System for Award Management (SAM). In the event that the EFT information changes, the Contractor shall be responsible for providing the updated information to SAM.

(c) *Mechanisms for EFT payment.* The Government may make payment by EFT through either the Automated Clearing House (ACH) network, subject to the rules of the National Automated Clearing House Association, or the Fedwire Transfer System. The rules governing Federal payments through the ACH are contained in 31 CFR Part 210.

(d) *Suspension of payment.* If the Contractor's EFT information in the SAM is incorrect, then the Government need not make payment to the Contractor under this contract until correct EFT information is entered into the SAM; and any invoice or contract financing request shall be deemed not to be a proper invoice for the purpose of prompt payment under this contract. The prompt payment terms of the contract regarding notice of an improper invoice and delays in accrual of interest penalties apply.

(e) *Liability for uncompleted or erroneous transfers.*

(1) If an uncompleted or erroneous transfer occurs because the Government used the Contractor's EFT information incorrectly, the Government remains responsible for--

(i) Making a correct payment;

(ii) Paying any prompt payment penalty due; and

(iii) Recovering any erroneously directed funds.

(2) If an uncompleted or erroneous transfer occurs because the Contractor's EFT information was incorrect, or was revised within 30 days of Government release of the EFT payment transaction instruction to the Federal Reserve System, and--

(i) If the funds are no longer under the control of the payment office, the Government is deemed to have made payment and the Contractor is responsible for recovery of any erroneously directed funds; or

(ii) If the funds remain under the control of the payment office, the Government shall not make payment, and the provisions of paragraph (d) of this clause shall apply.

(f) *EFT and prompt payment.* A payment shall be deemed to have been made in a timely manner in accordance with the prompt payment terms of this contract if, in the EFT payment transaction instruction released to the Federal Reserve System, the date specified for settlement of the payment is on or before the prompt payment due date, provided the specified payment date is a valid date under the rules of the Federal Reserve System.

(g) *EFT and assignment of claims.* If the Contractor assigns the proceeds of this contract as provided for in the assignment of claims terms of this contract, the Contractor shall require as a condition of any such assignment, that the assignee shall register separately in SAM and shall be paid by EFT in accordance with the terms of this clause. Notwithstanding any other requirement of this contract, payment to an ultimate recipient other than the Contractor, or a financial institution properly recognized under an assignment of claims pursuant to Subpart 32.8, is not permitted. In all respects, the requirements of this clause shall apply to the assignee as if it were the Contractor. EFT information that shows the ultimate recipient of the transfer to be other than the Contractor, in the absence of a proper assignment of claims acceptable to the Government, is incorrect EFT information within the meaning of paragraph (d) of this clause.

(h) *Liability for change of EFT information by financial agent.* The Government is not liable for errors resulting from changes to EFT information made by the Contractor's financial agent.

(i) *Payment information.* The payment or disbursing office shall forward to the Contractor available payment information that is suitable for transmission as of the date of release of the EFT instruction to the Federal Reserve System. The Government may request the Contractor to designate a desired format and method(s) for delivery of payment information from a list of formats and methods the payment office is capable of executing. However, the Government does not guarantee that any particular format or method of delivery is available at any particular payment office and retains the latitude to use the format and delivery method most convenient to the Government. If the Government makes payment by check in accordance with paragraph (a) of this clause, the Government shall mail the payment information to the remittance address contained in SAM.

(End of clause)

52.233-3 (DEV) Protest after Award (Aug 1996) (DEVIATION NOV 2025)

(a) Upon receipt of a stop-work order, the Contractor must immediately comply with its terms and take all reasonable steps to minimize incurring costs allocable to the work covered by the order during the period of work stoppage. After receiving the final decision in the protest, the Contracting Officer must either—

(1) Cancel the stop-work order; or

(2) Terminate the work covered by the order as provided in the Termination clause of this contract.

(b) If a stop-work order issued under this clause is canceled either before or after a final decision in the protest, the Contractor must resume work. The Contracting Officer must make an equitable adjustment in the delivery schedule or contract price, or both, and the contract must be modified, in writing, accordingly, if—

(1) The stop-work order results in an increase in the time required for, or in the Contractor's cost properly allocable to, the performance of any part of this contract; and

(2) The Contractor asserts its right to an adjustment within 30 days after the end of the period of work stoppage; provided, that if the Contracting Officer decides the facts justify the action, the Contracting Officer may receive and act upon a proposal submitted at any time before final payment under this contract.

(c) If a stop-work order is not canceled and the work covered by the order is terminated for the convenience of the Government, the Contracting Officer must allow reasonable costs resulting from the stop-work order in arriving at the termination settlement.

(d) If a stop-work order is not canceled and the work covered by the order is terminated for default, the Contracting Officer must allow, by equitable adjustment or otherwise, reasonable costs resulting from the stop-work order.

(e) The Government's rights to terminate this contract at any time are not affected by action taken under this clause.

(f) If, as the result of the Contractor's intentional or negligent misstatement, misrepresentation, or miscertification, a protest related to this contract is sustained, and the Government pays costs, the Government may require the Contractor to reimburse the Government the amount of such costs. In addition to any other remedy available, and pursuant to the requirements of subpart 32.6, the Government may collect this debt by offsetting the amount against any payment due the Contractor under any contract between the Contractor and the Government.

(End of clause)

52.233-4 (DEV) Applicable Law for Breach of Contract Claim (Oct 2004) (DEVIATION NOV 2025)

United States law will apply to resolve any claim of breach of this contract.

(End of clause)

2852.212-4 Contract Terms and Conditions, Commercial Items (FAR Deviation) (NOV 2020)

When a commercial item is contemplated (using FAR part 12 procedures or otherwise) and the contract will include FAR 52.212-4, the following replaces subparagraph (g)(2); paragraph (h); subparagraph (i)(2); paragraph (s); and paragraph (u), Unauthorized Obligations, of the basic FAR clause, and adds paragraph (w), as follows:

(g)(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment act regulations at 5 CFR part 1315, as modified by subparagraph (i)(2), *Prompt payment*, of this clause.

* * * * *

(h) *Patent indemnity*. Contractor shall indemnify and hold harmless the Government and its respective affiliates, officers, directors, employees, agents, successors and assigns (collectively, "Indemnities") from and against any and all liability and losses incurred by the Indemnities that are (i) included in any settlement and/or (ii) awarded by a court of competent jurisdiction arising from or in connection with any third party claim of infringement made against Indemnities asserting that any product or service supplied under this contract constitutes infringement of any patent, copyright, trademark, service mark, trade name or other proprietary or intellectual right. This indemnity shall not apply unless Contractor shall have

been informed within a reasonable time by the Government of the claim or action alleging such infringement and shall have been given such opportunity as is afforded by applicable laws, rules, or regulations to participate in its defense. This indemnity also shall not apply to any claim unreasonably settled by the Government which obligates Contractor to make any admission or pay any amount without written consent signed by an authorized officer of Contractor, unless required by final decree of a court of competent jurisdiction.

(i)(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations (5 CFR part 1315), with the following modification regarding the due date: For the sole purpose of computing an interest penalty due the Contractor, the Government agrees to inspect and determine the acceptability of any supply delivered or service performed specified in the invoice within thirty (30) days of receipt of a proper invoice from the Contractor, after which time, if no affirmative action has been taken by the Government to accept such supply or service, the supply or service will be deemed accepted and payment due thirty (30) days from the date of deemed acceptance. If the Government makes the determination that the item delivered or service performed is deficient or otherwise unacceptable, or the invoice is otherwise determined not to be a proper invoice, the terms and conditions of this paragraph regarding prompt payment will apply to the date the Contractor corrects the deficiency in the item delivered or service performed or submits a proper invoice. If actual acceptance occurs within the constructive acceptance period, the Government will base the determination of an interest penalty on the actual date of acceptance. The constructive acceptance requirement does not, however, compel Government officials to accept supplies or services, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services.
- (2) The Assignments, Payments, Invoice, Other Compliances, and Compliance with Laws Unique to Government Contracts provisions of the basic FAR clause at 52.212-4, and the Unauthorized Obligations and Contractor's Commercial Supplier Agreements—Unenforceable Clauses provisions of JAR 2852.212-4.
- (3) FAR 52.212-5.
- (4) Other paragraphs of the basic FAR clause at 52.212-4, with the exception of paragraph (o), Warranty, and those paragraphs identified in this deviation of 52.212-4.
- (5) Addenda to this solicitation, contract, or order, including contractor's Commercial supplier agreements incorporated into the contract.
- (6) Solicitation provisions if this is a solicitation.
- (7) Paragraph (o), Warranty, of the basic FAR clause at 52.212-4.
- (8) The Standard Form 1449.
- (9) Other documents, exhibits, and attachments.
- (10) The specification.

(u) *Unauthorized obligations.*

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract or order is subject to any Commercial supplier agreement that includes any language, provision, or clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (see 31 U.S.C. 1341), the following shall govern:

- (i) Any such language, provision, or clause is unenforceable against the Government.
- (ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an "I agree" click box or other similar mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.
- (iii) Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement and have no effect.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(w) *Commercial supplier agreements—unenforceable clauses.* When any supply or service acquired under this contract or order is subject to a contractor's commercial supplier agreement, the following shall be deemed incorporated into such agreement and modifies and replaces any similar language, provision, or clause in such agreement. As used herein, "this agreement" means any contractor commercial supplier agreement:

(1) Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:

(i) *Applicability*. This agreement is a part of a contract between commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument (including all contracts, task orders, and delivery orders under FAR part 12).

(ii) *End user*. This agreement shall bind the Government as end user but shall not operate to bind the Government employee or person acting on behalf of the Government in his or her personal capacity.

(iii) *Law and disputes*. This agreement is governed by Federal law.

(A) Any language, provision, or clause purporting to subject the U.S. Government to the laws of any U.S. state, territory, district, or municipality, or the laws of a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted and shall have no effect.

(B) Any language, provision, or clause requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted and shall have no effect.

(C) Any language, provision, or clause prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted and shall have no effect.

(iv) *Continued performance*. Notwithstanding any other provision in this agreement, if the Contractor believes the Government to be in breach of this contract, order, or agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while continuing performance as set forth in subparagraph (d), Disputes, of FAR 52.212-4.

(v) *Arbitration; equitable or injunctive relief*. In the event of a claim or dispute arising under or relating to the contract, order, or this agreement, (A) binding arbitration shall not be used unless otherwise specifically authorized by agency guidance, and (B) equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the Government only when explicitly provided by statute.

(vi) *Updating terms*.

(A) After award, the contractor may unilaterally revise terms if they are not material. Material terms are defined as:

(1) Terms that change Government rights or obligations;

(2) Terms that increase Government prices;

(3) Terms that decrease the overall level of service; or

(4) Terms that limit any other Government right addressed elsewhere in this contract.

(B) For revisions that materially change the terms of the contract, the revised commercial supplier agreement must be incorporated into the contract using a bilateral modification.

(C) Any agreement terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provisions of this contract shall not be enforceable against the Government, and the Government shall not be deemed to have consented to them.

(vii) *Order of precedence*. Any Order of Precedence clause in any commercial supplier agreement is not enforceable against the Government. The applicable Order of Precedence for this contract, order, or agreement is FAR 52.212-4(s), as revised by JAR 2812.302 and 2852.212-4(s).

(viii) *No automatic renewals*. If any license or service tied to period payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by a properly warranted contracting officer, and any provision or term of any license or service purporting to provide for automatic renewal is unenforceable against the Government.

(ix) *Indemnification by the Government or end-user*. Any language, provision, or clause of this commercial supplier agreement requiring the Government or End-user to indemnify the commercial supplier or licensor is not enforceable against the Government.

(x) *Indemnification by the commercial supplier or licensor*. Any clause of this agreement requiring or permitting the commercial supplier or licensor to defend the Government as a condition of indemnifying the Government for any claim of infringement is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(xi) *Audits*. Any language, provision, or clause of this commercial supplier agreement permitting Contractor to audit the end user's compliance with this agreement is not enforceable against the Government. To the extent any language, provision or clause of this agreement permits Contractor to audit the Government's compliance under this contract, order, or agreement, such language, provision, or clause of this agreement is hereby stricken and replaced as follows:

“(A) If Contractor reasonably believes that the Government has violated the terms of this agreement with regard to the restrictions on authorized use and/or the number of authorized users, upon written request from Contractor, including an explanation of the basis for the request, DOJ will provide a redacted version of the Government's most recent Security Assessment and Authorization package (SAA) to Contractor on a confidential basis, so that Contractor may reasonably verify the Government's compliance with its obligations under this agreement. Contractor understands and agrees that the Government will remove or redact any information from the SAA that it reasonably believes may compromise (a) the security of the Government's information technology environment; (b) the confidentiality of any third-party proprietary or confidential information; (c) any confidential, sensitive law enforcement information; and (d) any other information that the Government believes may compromise a past, current, or prospective investigation, prosecution, or litigation. Notwithstanding the preceding, and subject to the Government's policies and procedures for such review, including but

not limited to complying with all Government security requirements prior to being granted access to the Government's facilities, including the execution of appropriate confidentiality and/or non-disclosure agreements, the Government will arrange, upon Contractor's written request, for Contractor to view an un-redacted version of the SAA on Government premises. Contractor understands that Contractor will be provided a copy of the un-redacted SAA on Government premises only and that no un-redacted copy of the SAA, or any medium containing information relating to it, will be permitted to be removed from Government premises.

(B) The Contractor also understands and agrees that the Contractor shall make a request under this paragraph no more than on an annual basis and only during the period of the contract, and that any activities performed by Contractor under this clause will be performed at Contractor's expense, without reimbursement by the Government.

(C) Discrepancies found with regard to the restrictions on authorized use and/or the number of authorized users may result in a charge by Contractor to the Government. Any resulting invoice must comply with the proper invoicing and payment requirements specified in the contract. This charge, if disputed by the Government, will be resolved through the Disputes clause at 52.212-4(d); no payment obligation shall arise on the part of the Government until the conclusion of the dispute process."

(xii) *Taxes or surcharges.* Any taxes or surcharges which the Contractor seeks to pass along to the Government as end user will be governed by the terms of the underlying Government contract and, in any event, must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.

(xiii) *Non-assignment.* This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted under FAR 52.212-4 (b), Assignment.

(xiv) *Confidential information.*

(A) During the term of this contract or order, either party may identify information as "confidential information," and there shall be no disclosure, dissemination, or publication of any such information except to the extent required for the performance of this contract or order and otherwise provided in this clause or by statute or regulation. Specifically, the parties agree that the party receiving confidential information may only disclose such information to its employees and contractors on a "need-to-know" basis to carry out the obligations of this contract or order, and that subcontractors performing under this Agreement are subject to the same stipulations provided in this provision. The parties also agree that this provision shall survive the termination of this contract or order, and any confidential information obtained or received which comes within these restrictions shall remain confidential, provided that the obligation to treat information as confidential shall not apply to information which is or becomes publicly available through no improper action of the receiving party; is or comes to be in the receiving party's possession independent of its relationship with the disclosing party; is developed by or becomes known to the receiving party without use of any confidential information of the disclosing party; or is obtained rightfully from a third party not bound by an obligation of confidentiality. Additionally, nothing in this contract or order shall restrict disclosure by the receiving party pursuant to any applicable law, including but not limited to the Freedom of Information Act, 5 U.S.C. 552, *et seq.*, or an order of any court of competent jurisdiction, provided that in either such case the receiving party gives prompt notice to the disclosing party to allow the disclosing party to interpose an objection to such disclosure, take action to assure confidential handling of the confidential information, or take such other action as it deems appropriate to protect its confidential information.

(B) The Government considers and hereby identifies as confidential any and all information related to any inquiries and/or searches performed by the Government or by contractor at the Government's direction under this contract or order, including the subject of any such inquiry or search and any and all search terms, regardless of whether provided in writing or orally to Contractor, and Contractor agrees that it may only disclose such information to its employees and contractors on a "need-to-know" basis to carry out the obligations of this contract or order and that it will not share, reveal, divulge, disclose, disseminate, or publicize any such information to any third party except as provided in this provision without the prior written approval of the Contracting Officer. Contractor also understands and agrees that any subcontractors performing under this contract or order are subject to the same stipulations and that Contractor may be held responsible for any violations of confidentiality by a subcontractor.

(C) These provisions are consistent with and do not supersede, conflict with, or otherwise alter an employee's obligations, rights, or liabilities created by existing statute or Executive order relating to (1) classified information, (2) communications to Congress, (3) the reporting to an Inspector General of a violation of any law, rule, or regulation, or mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety, or (4) any other whistleblower protection. The definitions, requirements, obligations, rights, sanctions, and liabilities created by Executive orders and statutory provisions relating to whistleblower protection are incorporated into this contract and are controlling.

(D) The Government may share the terms, conditions and prices set forth in this Order with, and provide a copy of the Order to, other Executive branch agencies of the U.S. Government, provided that the Government shall ensure that other Executive branch agencies to which it provides such information will be required to treat all such information consistent with terms and conditions set forth in this Order.

(E) Notwithstanding anything in this agreement, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided,

however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this Order.

(xv) *Authorized users.* Authorized users may include full and part-time employees of the Government, including those working at or from remote locations, and contractors and contractor employees working within the scope of their contract with the Government, including those at or from remote locations.

(xvi) *Authorized use.* Authorized users are authorized to use the product or service acquired under this contract in performing business on behalf of the Government. Any information obtained or acquired by the Government under this contract may be used by the Government in the performance of Government business.

(2) If any language, provision, or clause of this agreement conflicts or is inconsistent with the preceding paragraph (w)(1), the language, provisions, or clause of paragraph (w)(1) shall prevail to the extent of such inconsistency.

DOJ-02 Contractor Privacy Requirements (JAN 2022)

A. Limiting Access to Privacy Act and Other Sensitive Information

(1) *Privacy Act Information*

In accordance with FAR 52.224-1 Privacy Act Notification (APR 1984) and FAR 52.224-2 Privacy Act (APR 1984), if this contract requires Contractor personnel to have access to information protected by the Privacy Act of 1974, the contractor is advised that the relevant DOJ system of records notices (SORNs) applicable to this Privacy Act information may be found at <https://www.justice.gov/opcl/doj-systems-records>. [1] Applicable SORNs published by other agencies may be accessed through those agencies' websites or by searching the Federal Digital System (FDsys) available at <http://www.gpo.gov/fdsys/>. SORNs may be updated at any time.

(2) *Prohibition on Performing Work Outside a Government Facility/Network/Equipment*

Except where use of Contractor networks, IT, other equipment, or Workplace as a Service (WaaS) is specifically authorized within this contract, the Contractor shall perform all tasks on authorized Government networks, using Government-furnished IT and other equipment and/or WaaS and Government information shall remain within the confines of authorized Government networks at all times. Any handling of Government information on Contractor networks or IT must be approved by the Senior Component Official for Privacy of the component entering into this contract. Except where remote work is specifically authorized within this contract, the Contractor shall perform all tasks described in this document at authorized Government facilities; the Contractor is prohibited from performing these tasks at or removing Government-furnished information to any other facility; and Government information shall remain within the confines of authorized Government facilities at all times. Contractors may only access classified materials on government furnished equipment in authorized government owned facilities regardless of remote work authorizations.

(3) *Prior Approval Required to Hire Subcontractors*

The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (Subcontractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under or relating to this contract. The Contractor (and any Subcontractor) is required to abide by Government and Agency guidance for protecting sensitive and proprietary information.

(4) *Separation Checklist for Contractor Employees*

The Contractor shall complete and submit an appropriate separation checklist to the Contracting Officer before any employee or Subcontractor employee terminates working on the contract. The Contractor must submit the separation checklist on or before the last day of employment or work on the contract. The separation checklist must verify: (1) return of any Government-furnished equipment; (2) return or proper disposition of personally identifiable information (PII)[2], in paper or electronic form, in the custody of the employee or Subcontractor employee including the sanitization of data on any computer systems or media as appropriate; and (3) termination of any technological access to the Contractor's facilities or systems that would permit the terminated employee's access to PII or other sensitive information.

In the event of adverse job actions resulting in the dismissal of a Contractor or Subcontractor employee before the separation checklist can be completed, the Prime Contractor must notify the Contracting Officer within 24 hours

and confirm receipt of the notification. In the case the Contractor is unable to notify the Contracting Officer, then the Contractor should notify the Contract Officer's Representative (COR).

Contractors must complete the separation checklist with the Contracting Officer or COR by returning all Government-furnished property including, but not limited to, computer equipment, media, credentials and passports, smart cards, mobile devices, Personal Identity Verification (PIV) cards, calling cards, and keys and terminating access to all user accounts and systems. Unless the Contracting Officer requests otherwise, the relevant Program Manager or other Key Personnel designated by the Contracting Officer or COR may facilitate the return of equipment.

B. Privacy Training, Safeguarding, and Remediation

(1) Required Security and Privacy Training for Contractors

The Contractor must ensure that all employees take appropriate privacy training, including Subcontractors who have access to PII as well as the creation, use, dissemination and/or destruction of PII at the outset of the employee's work on the contract and every year thereafter. Training must include procedures on how to properly handle PII, including heightened security requirements for the transporting or transmission of sensitive PII, and reporting requirements for a suspected breach or loss of PII. These courses, along with more information about DOJ security and training requirements for Contractors, are available at <https://www.justice.gov/jmd/learndoj>. The Federal Information Security Modernization Act of 2014 (FISMA) requires all individuals accessing DOJ information to complete training on records management, cybersecurity awareness, and information system privacy awareness. Contractor employees are required to sign the "Privacy Rules of Behavior," acknowledging and agreeing to abide by privacy law, policy, and certain privacy safeguards, prior to accessing DOJ information. These Rules of Behavior are made available to all new users of DOJ's computer network and to trainees at the conclusion of DOJ-OPCL-CS-0005.

The Contractor should maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required privacy and cybersecurity training.

(2) Safeguarding PII Requirements

Contractor employees must comply with DOJ Order 0904 and other guidance published to the publicly-available Office of Privacy and Civil Liberties (OPCL) Resources page[3] relating to the safeguarding of PII, including the use of additional controls to safeguard sensitive PII (e.g., the encryption of sensitive PII). This requirement flows down from the Prime Contractor to all Subcontractors and lower tiered subcontracts.

(3) Non-Disclosure Agreement Requirement

Prior to commencing work, all Contractor personnel that may have access to PII or other sensitive information shall be required to sign a Non-Disclosure Agreement (NDA) and the DOJ IT Rules of Behavior. The Non-Disclosure Agreement:

- (a) prohibits the Contractor from retaining or divulging any PII or other sensitive information, or derivatives therefrom, furnished by the Government or to which they may otherwise come in contact as a result of their performance of work under the contract/task order that is otherwise not publicly available, whether or not such information has been reduced to writing; and
- (b) requires the Contractor to report any loss of control, compromise, unauthorized disclosure, or unauthorized acquisition of PII or other sensitive information to the component-level or headquarters Security Operations Center within one (1) hour of discovery.

The Contractor should maintain signed copies of the NDA for all employees as a record of compliance. The Contractor should also provide copies of each employee's signed NDA to the Contracting Officer before the employee may commence work under the contract/task order.

(4) Prohibition on Use of PII in Vendor Billing and Administrative Records

The Contractor's invoicing, billing, and other financial or administrative records or databases is not authorized to regularly store or include any sensitive PII or other confidential government information that is created, obtained, or provided during the performance of the contract without the written permission of the Senior Component Official for Privacy (SCOP). It is acceptable to list the names, titles and contact information for the Contracting Officer, COR, or other personnel associated with the administration of the contract in the invoices as needed.

(5) Reporting Actual or Suspected Data Breach

Contractors must report any actual or suspected breach of PII within one hour of discovery.[4] A "breach" is an incident or occurrence that involves the loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII or (2) an authorized user accesses or potentially accesses PII for an other than authorized purpose. The report of a breach must be made to DOJ. The Contractor must cooperate with DOJ's inquiry into the incident and efforts to minimize risks to DOJ or individuals, including remediating any harm to potential victims.

(a) The Contractor must develop and maintain an internal process by which its employees and Subcontractors are trained to identify and report the breach, consistent with DOJ Instruction 0900.00.01[5], Reporting and Response Procedures for a Breach of Personally Identifiable Information.

(b) The Contractor must report any such breach by its employees or Subcontractors to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000); Component-level Security Operations Center and Component-level Management Team, where appropriate; the COR; and the Contracting Officer within one (1) hour of the initial discovery.

(c) The Contractor must provide a written report to the DOJ Security Operations Center (dojcert@usdoj.gov, 202-357-7000) within 24 hours of discovery of the breach by its employees or Subcontractors. The report must contain the following information:

- (i) Narrative or detailed description of the events surrounding the suspected loss or compromise of information.[6] Date, time, and location of the incident.
- (ii) Amount, type, and sensitivity of information that may have been lost or compromised, accessed without authorization, etc.
- (iii) Contractor's assessment of the likelihood that the information was compromised or lost and the reasons behind the assessment.[7]
- (iv) Names and classification of person(s) involved, including victim, Contractor employee/Subcontractor and any witnesses.
- (v) Cause of the incident and whether the company's security plan was followed and, if not, which specific provisions were not followed.[8]
- (vi) Actions that have been or will be taken to minimize damage and/or mitigate further compromise.
- (vii) Recommendations to prevent similar situations in the future, including whether the security plan needs to be modified in any way and whether additional training may be required.

(d) The Contractor shall provide full access and cooperation for all activities determined by the Government to be required to ensure an effective incident response, including providing all requested images, log files, and event information to facilitate rapid resolution of sensitive information incidents.

(e) At the Government's discretion, Contractor employees or Subcontractor employees may be identified as no longer eligible to access PII or to work on that contract based on their actions related to the loss or compromise of PII.

(6) Victim Remediation

At DOJ's request, the Contractor is responsible for notifying victims and providing victim remediation services in the event of a breach of PII held by the Contractor, its agents, or its Subcontractors, under this contract. Victim remediation services shall include at least 18 months of credit monitoring and, for serious or large incidents as determined by the Government, call center help desk services for the individuals whose PII was lost or compromised. When DOJ requests notification, the Department Chief Privacy and Civil Liberties Officer and SCOP will direct the Contractor on the method and content of such notification to be sent to individuals whose PII was breached. By performing this work, the Contractor agrees to full cooperation in the event of a breach. The Contractor should be self-insured to the extent necessary to handle any reasonably foreseeable breach,

with another source of income, to fully cover the costs of breach response, including but not limited to victim remediation.

C. Government Records Training, Ownership, and Management

(1) Records Management Training and Compliance

(a) The Contractor must ensure that all employees and Subcontractors that have access to PII as well as to those involved in the creation, use, dissemination and/or destruction of PII take the *DOJ Records and Information Training for New Employees (RIM)* training course or another training approved by the Contracting Officer or COR. This training will be provided at the outset of the Subcontractor's/employee's work on the contract and every year thereafter. The Contractor shall maintain copies of certificates as a record of compliance and must submit an email notification annually to the COR verifying that all employees working under this contract have completed the required records management training.

(b) The Contractor agrees to comply with Federal and Agency records management policies, including those policies associated with the safeguarding of records containing PII and those covered by the Privacy Act of 1974. These policies include the preservation of all records created or received regardless of format, mode of transmission, or state of completion.

(2) Records Creation, Ownership, and Disposition

(a) The Contractor shall not create or maintain any records not specifically tied to or authorized by the contract using Government IT equipment and/or Government records or that contain Government Agency information. The Contractor shall certify, in writing, the appropriate disposition or return of all Government information at the conclusion of the contract or at a time otherwise specified in the contract. In accordance with 36 CFR 1222.32, the Contractor shall maintain and manage all Federal records created in the course of performing the contract in accordance with Federal law. Records may not be removed from the legal custody of DOJ or destroyed except in accordance with the provisions of the agency records schedules.

(b) Except as stated in the Performance Work Statement and, where applicable, the Contractor's Commercial License Agreement, the Government Agency owns the rights to all electronic information (electronic data, electronic information systems or electronic databases and all supporting documentation and associated metadata created as part of this contract. All deliverables (including all data and records) under the contract are the property of the U.S. Government and may be considered federal records, for which the Agency shall have unlimited rights to use, dispose of, or disclose such data contained therein. The Contractor must deliver sufficient technical documentation with all data deliverables to permit the agency to use the data.

(c) The Contractor shall not retain, use, sell, disseminate, or dispose of any government data/records or deliverables without the express written permission of the Contracting Officer or Contracting Officer's Representative. The Agency and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. § 2701. Records may not be removed from the legal custody of the Agency or destroyed without regard to the provisions of the Agency records schedules.

D. Data Privacy and Oversight

(1) Restrictions on Testing or Training Using Real Data Containing PII

The use of real data containing PII from any source for testing or training purposes is generally prohibited. The Contractor shall use synthetic or de-identified real data for testing or training whenever feasible.

(2) Requirements for Contractor IT Systems Hosting Government Data

The Contractor is required to obtain an Authority To Operate (ATO) for any IT environment owned or controlled by the Contractor or any Subcontractor on which Government data shall reside for the purposes of IT system development, design, data migration, testing, training, maintenance, use, or disposal.

(3) Requirement to Support Privacy Compliance

(a) If this contract requires the development, maintenance or administration of information technology[9], the Contractor shall support the completion of the Initial Privacy Assessment (IPA) document, if requested by Department personnel. An IPA is the first step in a process to identify potential privacy issues and mitigate privacy risks. The IPA asks basic questions to help components assess whether additional privacy protections may be needed in designing or implementing a project[10] to mitigate privacy risks, and whether compliance work may be needed. Upon review of the IPA, the OPCL determines whether a Privacy Impact Assessment (PIA) document and/or SORN, or modifications thereto, are required. The Contractor shall provide adequate support to complete the applicable risk assessment and PIA document in a timely manner, and shall ensure that project management plans and schedules include the IPA, PIA, and SORN (to the extent required) as milestones. Additional information on the privacy compliance process at DOJ, including IPAs, PIAs, and SORNs, is located on the DOJ OPCL website (<https://dojnet.doj.gov/privacy/>), including DOJ Order 0601, Privacy and Civil Liberties. The Privacy Impact Assessment Guidance and Template outline the requirements and format for the PIA.

(b) If the contract involves an IT system build or substantial development or changes to an IT system that may require privacy risk assessment and documentation, the Contractor shall provide adequate support to DOJ to ensure DOJ can complete any required assessment, and IPA, PIA, SORN, or other supporting documentation to support privacy compliance. The Contractor shall work with personnel from the program office, OPCL, the Office of the Chief Information Officer (OCIO), and the Office of Records Management and Policy to ensure that the privacy assessments and documentation are kept on schedule, that the answers to questions in the documents are thorough and complete, and that questions asked by the OPCL and other offices are answered in a timely fashion. The Contractor must ensure the completion of required PIAs and documentation of privacy controls consistent with federal law and standards, e.g. NIST 800-53, Rev. 5; and compliance with the Privacy Act of 1974, E-Government Act of 2002, Federal Information Security Modernization Act of 2014, and key OMB guidelines, e.g., OMB Circular A-130.

[1] “[T]he term ‘record’ means any item, collection, or grouping of information about an individual that is maintained by an agency, including, but not limited to, his education, financial transactions, medical history, and criminal or employment history and that contains his name, or the identifying number, symbol, or other identifying particular assigned to the individual, such as a finger or voice print or a photograph.” 5 U.S.C. § 552a(a)(4). “[T]he term ‘system of records’ means a group of any records under the control of any agency from which information is retrieved by the name of the individual or by some identifying number, symbol, or other identifying particular assigned to the individual.” 5 U.S.C. § 552a(a)(5).

[2] As stated in FAR 52.224-3 and Office of Management and Budget (OMB) Circular A-130, Managing Federal Information as a Strategic Resource (2016), “‘personally identifiable information’ means information that can be used to distinguish or trace an individual’s identity, either alone or when combined with other information that is linked or linkable to a specific individual.” Regarding “sensitive PII,” “[t]he sensitivity level of the PII will depend on the context, including the purpose for which the PII is created, collected, used, processed, stored, maintained, disseminated, disclosed, or disposed. For example, the sensitivity level of a list of individuals’ names may depend on the source of the information, the other information associated with the list, the intended use of the information, the ways in which the information will be processed and shared, and the ability to access the information.” OMB Circular A-130, at App. II-2.

[3] The DOJ OPCL Resources page is available at <https://www.justice.gov/opcl/resources>.

[4] As stated in DOJ Instruction 0900, “Contractors must notify the Contracting Officer, the Contracting Officer’s Representative, and JSOC (or component-level SOC) within 1 hour of discovering any incidents, including breaches, consistent with this Instruction, guidance issued by the CPCLO, NIST standards and guidelines, and the US-CERT notification guidelines.”

[5] <https://www.justice.gov/file/4336/download>

[6] As stated in DOJ Instruction 0900, the description should include the type of information that constitutes PII; purpose for which PII is collected, maintained, and used; extent to which PII identifies a peculiarly vulnerable population; the determination of whether the information was properly encrypted or rendered partially or completely inaccessible by other means; format of PII (e.g., whether PII was structured or unstructured); length of time PII was exposed; any evidence confirming that PII is being misused or that it was never accessed.

[7] As stated in DOJ Instruction 0900, the report should include the nature of the cyber threat (e.g., Advanced Persistent Threat, Zero Day Threat, data exfiltration) for cyber incidents.

[8] As stated in DOJ Instruction 0900, the report should include analysis on whether the data is accessible, usable, and intentionally targeted.

[9] As defined in 40 U.S.C. § 11101, the term “information technology” means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use (i) of that equipment or (ii) of that equipment to a significant extent in the

performance of a service or the furnishing of a product; includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but does not include any equipment acquired by a federal contractor incidental to a federal contract.

[10] In this instance, the term “project” is used to scope the activities (e.g., creating, collecting, using, processing, storing, maintaining, disseminating, disclosing, or disposing of information) covered by an IPA. A project is intended to be technology-neutral, and may include an information system, a digital service, an information technology, a combination thereof, or some other activity that may create potential privacy issues or privacy risks that would benefit from an IPA. The scope of a project covered by an IPA is discretionary, but components should work with their SCOP and OPCL.

(End of Clause)

DOJ-05 Security of Department Information and Systems (APR 2026)

I. Applicability to Contractors and Subcontractors

Section 2839.102 of the Justice Acquisition Regulation (JAR), (48 C.F.R. § 2839.102), applies to this contract. Accordingly, all contractors are obligated to comply with all applicable DOJ security policies, directives, or guidance documents, including the security requirements in the provisions in this contract clause. This contract clause applies to all contractors and subcontractors, including cloud service providers (“CSPs”), and personnel of the contractors and subcontractors (hereinafter collectively, “Contractor”) that may access, collect, store, process, maintain, use, share, retrieve, disseminate, transmit, or dispose of DOJ Information. The security requirements set forth herein are in addition to those required by the Federal Acquisition Regulation (“FAR”), and any other applicable laws, mandates, contract clauses, DOJ policies, directives or guidance documents and Executive Orders pertaining to the development and operation of Information Systems and/or the protection of Government Information. This clause does not alter or diminish any existing rights, obligations, or liability under any other civil and/or criminal law, rule, regulation, or mandate.

II. General Definitions

The following general definitions apply to this clause. Specific definitions also apply as set forth in other paragraphs.

A. **Authorization to Operate (“ATO”)**, as defined in National Institute of Standards and Technology (“NIST”) Special Publication (“SP”) 800-37 Revision 2, is the official management decision given by a senior Federal official or officials to authorize operation of an information system and to explicitly accept the risk to agency operations (including mission, functions, image, or reputation), agency assets, individuals, other organizations, and the Nation based on the implementation of an agreed-upon set of security and privacy controls.

B. **Cloud Computing**, as defined in DOJ Order 0904 Cybersecurity Program, is a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This cloud model is composed of five essential characteristics, three service models, and four deployment models in accordance with NIST SP 800-145.

C. **Covered Contract** is any contract, order or other agreement under which the contractor, or a subcontractor at any tier, including a cloud service provider, may access, collect, store, process, maintain, use, share, retrieve, disseminate, transmit, or dispose of DOJ Information (as defined below) in the course of providing a product or service to the Department, with the exception of acquisitions under the micro-purchase threshold.

D. **Covered Information System** means any information system used for, involved with, or allowing, the processing, storing, or transmitting of DOJ Information under a Covered Contract.

E. **Data** means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data, computer software, and personally identifiable information (PII) (defined below). The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

F. **DOJ Information**, as defined in DOJ Order 0904, means any Information that is owned, produced, controlled, protected by, or otherwise within the custody or responsibility of the DOJ, including, without limitation, information related to DOJ programs or personnel. It includes, without limitation, Information (1) provided by or generated for the DOJ, (2) managed or acquired by the Contractor for the DOJ in connection with the performance of the contract, and/or (3) acquired to perform the contract.

G. **Information**, as defined in DOJ Order 0904, is any communication or representation of knowledge such as facts, data, or opinions, in any form or medium, including textual, numerical, graphic, cartographic, narrative, or audiovisual. This includes any communication or representation of knowledge in an electronic format that allows it to be stored, retrieved, or transmitted.

H. **Information System**, means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502(8)).

I. **Personally Identifiable Information** ("PII"), as defined in the FAR 24.101, means information that can be used to distinguish or trace an individual's identity, either alone or when combined with other information that is linked or linkable to a specific individual. It includes but is not limited to common data elements such as names, addresses, dates of birth, and places of employment, to identity documents, Social Security numbers or other government-issued identifiers, precise location information, medical history, and biometric records. This definition covers all PII that is created by or becomes available to the contractor, including its employees, subcontractors, or affiliates, as a result of performing under this contract. PII, as supplementally defined in DOJ Order 0904, also includes information about an individual maintained by an agency, including, but not limited to, information related to education, financial transactions, medical history, and criminal or employment history and information, which can be used to distinguish or trace an individual's identity.

J. **Private Cloud**, as defined in NIST SP 800-145, is the deployment model for cloud infrastructure provisioned for exclusive use by a single organization comprising multiple consumers (e.g., business units). It may be owned, managed, and operated by the organization, a third party, or some combination of them, and it may exist on or off premises.

K. **Security Breach** means any security incident (as defined below) that directly relates to the loss of control, compromise, exfiltration, manipulation, unauthorized disclosure, unauthorized acquisition, unauthorized exposure or unauthorized access or any similar occurrence of any Covered Information System or any DOJ Information or any PII accessed by, retrievable from, processed by, stored on, or transmitted within, to or from any such system. This includes incidents where (1) a person other than an authorized user accesses or potentially accesses PII or DOJ Information or (2) an authorized user accesses or potentially accesses PII or DOJ Information for an unauthorized purpose.

a. **Potential Security Breach** (hereinafter, "Potential Breach") means any suspected, but unconfirmed security breach (as defined above).

b. **Confirmed Security Breach** (hereinafter, "Confirmed Breach") means any confirmed security breach (as defined above).

L. **Security Incident** means any occurrence that (1) may actually or imminently jeopardize, without lawful authority, the availability, integrity, authentication, confidentiality, or nonrepudiation of DOJ Information or a Covered Information System; or (2) may constitute a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

a. **Potential Security Incident** means any suspected, but unconfirmed security incident (as defined above).

b. **Confirmed Security Incident** means any confirmed security incident (as defined above).

M. **Vulnerability**, as defined in DOJ Vulnerability Management Plan, and the OCIO Information Security Management Procedure, means a weakness or flaw discovered in the design of a system that, when exploited, may result in a loss of confidentiality, integrity, or availability of DOJ Information or an Information System.

III. Confidentiality and Non-Disclosure of DOJ Information

A. Preliminary and final contract deliverables and all associated working papers and material generated by the Contractor developed using DOJ Information, product, source code, and/or methods of operations, are the property of the U.S. Government and must be submitted to the Contracting Officer ("CO") or the CO's Representative ("COR") at the conclusion of the contract. The U.S. Government has unlimited data rights to all such deliverables and associated working papers and materials in accordance with FAR 52.227-14 (Rights in Data-General). The Contractor will define a method of monitoring the development activity to include any activity associated with DOJ Information, product, source code, and methods of operations. The data rights and development details shall be defined within the Contract.

If the Contractor intends to utilize its existing data, for which it has a patent or copyright, to develop a contract deliverable, it is incumbent upon the Contractor to negotiate with the CO the proper FAR Part 27 clauses in the contract to protect its existing data.

B. Pursuant to FAR 52.227-14(d)(2), all documents and data produced in the performance of this contract containing DOJ Information, product code, source code, and/or methods of operations are the property of the U.S. Government and, without the prior written permission of the CO, the Contractor shall neither reproduce nor release such information to any third-party at any time, including during performance or following expiration and/or termination of the contract.

C. Any DOJ Information made available to the Contractor under this contract shall be used only for the purpose of performance of this contract and shall not be divulged or made known in any manner to any persons except as may be necessary in the performance of this contract. In performance of this contract, the Contractor assumes responsibility for the protection of the confidentiality of all DOJ Information processed, stored, or transmitted by the Contractor. The Contractor shall comply with information security responsibilities and duties throughout the contract and after expiration/termination as appropriate per contract close-out activities. When requested by the CO (typically no more than annually), the Contractor shall provide a report to the CO identifying, to the best of the Contractor's knowledge and belief, the type, amount, and level of sensitivity of the DOJ Information processed, stored, or transmitted under the Contract, including an estimate of the number of individuals for whom PII has been processed, stored or transmitted under the Contract and whether such information includes social security numbers (in whole or in part).

IV. Compliance with Information Technology Security Policies, Procedures and Requirements

A. For all Covered Information Systems, in addition to any other applicable requirements, as set forth in Part I, the Contractor shall comply with the security requirements of the Federal Information Security Modernization Act of 2014 ("FISMA"), Privacy Act of 1974, E-Government Act of 2002, National Institute of Standards and Technology ("NIST") Special Publications ("SP"), including NIST SP 800-37, 800-53, and 800-60 Volumes I and II, Federal Information Processing Standards ("FIPS") Publications 140-2, 199, and 200, Federal Risk and Authorization Management Program ("FedRAMP"), DOJ IT Security Standards as amended, and OMB Memoranda relating to the security of information and/or Federal Information Systems.

B. In addition, for all Covered Information Systems, the Contractor shall comply with the following requirements, which are listed here only to highlight certain specific applicable requirements from one of the sources identified in the first paragraph of this Section. This is not an exhaustive list of all such requirements with which the Contractor is obligated to comply, and the omission of a requirement from this list should not be construed as negating the materiality of that requirement. These requirements and those in the authorities in the prior paragraph should be read together.

1. Limiting access to DOJ Information and Covered Information Systems to authorized users and to transactions and functions that authorized users are permitted to exercise.
2. Providing security awareness training at least annually to all Contractor employees and contractors involved with the Covered Contract. Such training shall include, but not be limited to, recognizing and reporting potential indicators of insider threats to users and managers of DOJ Information and Covered Information Systems.
3. Creating, protecting, and retaining, in accordance with applicable requirements but in any event at least until the expiration of the contract, Covered Information System audit records, reports, and supporting documentation to enable reviewing, monitoring, analysis, investigation, reconstruction, and reporting of unlawful, unauthorized, or inappropriate activity related to such Covered Information Systems and/or DOJ Information.
4. Maintaining authorizations to operate any Covered Information System.
5. Performing continuous monitoring on all Covered Information Systems, to include but not be limited to, collecting, reviewing, and analyzing appropriate logs and timely investigating security alerts and potential security incidents.
6. Establishing and maintaining baseline configurations and current inventories of Covered Information Systems, including hardware, software, firmware, and documentation, throughout the Information System Development Lifecycle, and establishing and enforcing security configuration settings for IT products employed in Covered Information Systems.
7. Ensuring appropriate contingency planning has been performed, including DOJ Information and Covered Information System backups.
8. Identifying Covered Information System users, processes acting on behalf of users, or devices, and authenticating and verifying the identities of such users, processes, or devices, using multifactor authentication or HSPD-12 compliant authentication methods as defined by NIST 800-63-3, Digital Identity Guidelines or current revision.
9. Establishing and maintaining an operational incident handling capability for Covered Information Systems that includes adequate and timely development, logging, detection, analysis, containment, recovery, and user response activities, and tracking, documenting, and timely reporting incidents to appropriate officials and authorities within the Contractor's organization and the DOJ.
10. Performing periodic and timely maintenance on Covered Information Systems, and providing effective controls on tools, techniques, mechanisms, and personnel used to conduct such maintenance.

11. Protecting Covered Information System media containing DOJ Information, including paper, digital and electronic media, and DOJ assets under Contractor control; protecting them from environmental impacts, access, and equipment positioning requirements defined; limiting access to DOJ Information to authorized users; and sanitizing or destroying Covered Information System media containing DOJ Information before disposal, release or reuse of such media.
12. Limiting physical access to Covered Information Systems, equipment, and physical facilities housing such Covered Information Systems to authorized personnel according to DOJ 03.
13. Screening individuals prior to authorizing access to Covered Information Systems to ensure compliance with DOJ Security standards including personnel background checks.
14. Continuously assessing the risk to DOJ Information in Covered Information Systems, including scanning and remediating vulnerabilities, or implementing appropriate mitigation in accordance with DOJ policy, and ensuring the timely removal of assets no longer supported by the Contractor.
15. Continuously monitoring the application of security controls of Covered Information Systems, assessing the efficacy of such controls, and developing and implementing plans of action designed to correct deficiencies and eliminate or reduce vulnerabilities in such Covered Information Systems.
16. Monitoring, controlling, and protecting information transmitted or received by Covered Information Systems at the external boundaries and key internal boundaries of such Covered Information Systems, and employing architectural designs, software development techniques, and systems engineering principles that promote effective security.
17. Identifying, reporting, and correcting Covered Information System security flaws in a timely manner, providing protection from malicious code at appropriate locations, monitoring security alerts and advisories and taking appropriate and timely action in response.
18. Ensuring return of Government Furnished Equipment ("GFE") and/or PIV card assets within 10 business days of notification for end of use (contract end, staff change, etc.).
19. Complying with rights in data (FAR 52.227-14) as to the development, management, and protection of DOJ Information.
20. Reporting on risks or known issues impacting DOJ Services (staffing, hardware, process, changes, etc.) through the Contractor's CO or COR, DOJ Service Owner ("SO"), and Government Technical Manager ("GTM") including risk mitigation activities.
21. Reporting through the Contractor's CO or COR on any projected or planned changes in corporate ownership, covered information system design, and/or any technical changes that could impact the confidentiality, integrity or availability of DOJ Information, data, or systems. Changes to system design must be updated through the authorization process per NIST SP 800-37 Revision 2, Step 6 ("Continuous Monitoring") or current NIST revision.
22. When, as part of operating within the DOJ environment, the Contractor's covered information system is subject to review, audit, or assessment by third parties, facilitating DOJ access to information system resources, facilities, personnel, and documentation in a timely manner as required by the auditors. Should a third-party organization conduct a review of any Covered Information System, the Contractor must provide a copy of the report to DOJ, through the CO and COR.
23. To enhance software supply chain and transparency, upon request, the Contractor shall provide a current Software Bill of Materials (SBOM) for all software, software updates, modules, libraries, and container images delivered or operated in the performance of this contract, consistent with applicable federal policy such as the National Telecommunications and Information (NTIA)-established minimum elements for SBOM to the CO who will refer to the DOJ Cyber-Security Risk Management team (C-SCRM) [Authority: OMB M-26-05; EO 14028/ NTIA minimum requirements].
24. Reporting on outages impacting DOJ Services through the Contractor's CO, COR, and DOJ Service Owner (SO) to include event and mitigation details.

C. The Contractor shall not process, store, or transmit DOJ Information using a Covered Information System without first obtaining an ATO for each Covered Information System. The ATO shall be signed by the Authorizing Official for the DOJ component responsible for maintaining the security, confidentiality, integrity, and availability of the DOJ Information under this contract. (For Cloud Computing Systems, see Section V, below.)

D. The Contractor shall ensure compliance with DOJ-03 (Personnel Security Requirements for Contractor Employees) as to all Covered Information Systems.

E. When requested by the DOJ CO or COR as described below, the Contractor shall provide DOJ, including the Office of Inspector General ("OIG") and Federal law enforcement components, (1) access to any and all information and records, including electronic information, regarding a Covered Information System, and (2) physical access to the

Contractor's facilities, installations, systems, operations, documents, records, and databases. Such access may include independent validation testing of controls, system penetration testing, and FISMA data reviews by DOJ or agents acting on behalf of DOJ, and such access shall be provided within 72 hours of the request. Additionally, the Contractor shall cooperate with DOJ's efforts to ensure, maintain, and safeguard the security, confidentiality, integrity, and availability of DOJ Information.

F. The use of Contractor-owned laptops or other portable digital or electronic media to process or store DOJ Information covered by this clause or access a Covered Information System is prohibited unless the CO approves it in writing after the Contractor has provided a letter certifying compliance with the following requirements. For any requirements which include the use or storage of PII, the Senior Component Official for Privacy must also approve. Any additional requirements set forth for the use or storage of PII under DOJ-02, Contractor Privacy Requirements, are in addition to, not superseded by, the requirements set forth here.

1. Media must be encrypted using a NIST FIPS 140-2 approved product.
2. The Contractor must develop and implement a process to ensure that security and other applications software is kept up to date.
3. Where applicable, media must utilize antivirus software and a host-based firewall mechanism.
4. The Contractor must log all computer-readable data extracts from databases holding DOJ Information and verify that each extract including such data has been erased within 90 days of extraction or that its use is still required. All DOJ Information should be treated by the Contractor as sensitive information unless specifically designated as non-sensitive by the DOJ.
5. A Rules of Behavior (ROB) form must be signed and acknowledged annually by users. These rules must address, at a minimum, authorized, and official use, prohibition against unauthorized users and use, and the protection of DOJ Information. The form also must notify the users that they have no reasonable expectation of privacy regarding any communications transmitted through or data stored on Contractor-owned laptops or other portable digital or electronic media.
6. Cybersecurity Awareness Training (CSAT) shall be provided annually by Contractor for all users of Covered Information System. This training must be submitted to, and approved by, the CO or COR in advance of being provided to users. Users must complete and acknowledge having received CSAT each year. At a minimum, CSAT provided by contractors must include:
 - a. Insider Threat Detection and Reporting – Importance of detecting, methodologies, indicators, and reporting
 - b. Privacy Awareness – Privacy Act and PII
 - c. General Cybersecurity – Information security, trends in advance persistent threats, social engineering/phishing, appropriate use, mobile devices, remote access, basic security best practices

G. Contractors shall not store DOJ information on Contractor-owned removable IT (e.g., media such as a thumb drive or external hard drive) unless expressly authorized in writing by the DOJ CO or COR in the performance of their contract.

H. When no longer needed, all media must be processed (sanitized, degaussed, or destroyed) in accordance with NIST SP 800-88, Guidelines for Media Sanitization.

I. The Contractor must keep an accurate inventory of digital or electronic media used in the performance of DOJ contracts.

J. The Contractor must remove all DOJ Information from Contractor media and return all such information to the DOJ within 10 days of the expiration or termination of the contract, unless otherwise extended by the CO, or waived (in part or whole) by the CO, and all such information shall be returned in a format and form acceptable to DOJ. The Contractor shall provide a written certification certifying the removal and return of all such information to the CO within 10 business days of the removal and return of all DOJ Information.

K. DOJ, at its discretion, may suspend the Contractor's access to any DOJ Information, or terminate the contract, when DOJ suspects that the Contractor has failed to comply with any security requirement, or in the event of an Information System Security Incident or Security Breach (see definitions above), where the Department determines that either event gives cause for such action. The suspension of access to DOJ Information may last until such time as DOJ, in its sole discretion, determines that the situation giving rise to such action has been corrected or no longer exists. Any termination action taken because of the Contractor's suspected failure to comply with any security requirement will be conducted in accordance with the applicable termination clause governing the awarded contract. The Contractor understands that any suspension or termination in accordance with this provision shall be at no cost to DOJ, and that upon request by the CO, the Contractor must immediately return all DOJ Information to DOJ, as well as any media upon

which DOJ Information resides, at the Contractor's expense. The Contractor must comply with FAR 52.227-14 (Rights in Data), FAR 52.245-1 (Government Property), DOJ 2400.3A Chapter 1 (component property procedures), and FAR 4.804-5(a)(6) (Procedures for closing out contract files).

V. Cloud Computing

A. The Contractor may not utilize the Cloud system of any Cloud Service Provider ("CSP") unless:

1. All of the following has occurred: (a) the Cloud system and CSP have been evaluated by a Third Party Assessing Organization ("3PAO") certified under FedRAMP; (b) the Cloud system received FedRAMP authorization; (c) the Contractor has provided the most current System Security Plan ("SSP") and Security Assessment Report ("SAR") to the DOJ CO for consideration, and provides any subsequent SSPs and SARs within 30 days of issuance; and, (d) the Authorizing Official for the DOJ component responsible for maintaining the security confidentiality, integrity, and availability of the DOJ Information under the Covered Contract has issued an ATO; or,
2. In cases where the CSP or its offering is not FedRAMP authorized, the COR approves utilization of the Cloud System after the CSP has worked with the authorizing official, the DOJ OCIO, and the FedRAMP Program Management Office to determine that the CSP is likely to seek and receive Agency/FedRAMP authorization within 1 year, or DOJ has authorized use as a Private Cloud or Contractor Owned, Contractor Operated system.

B. The Contractor must ensure that the CSP allows DOJ to access and retrieve any DOJ Information processed, stored, or transmitted in a Cloud system under this Contract within a reasonable time of any such request, but in no event less than 48 hours from the request. To ensure that the DOJ can fully and appropriately search and retrieve DOJ Information from the Cloud system, access shall include any schemas, meta-data, and other associated data artifacts.

C. The Contractor must ensure that the CSP provides access and information to support and enable DOJ's cloud security posture management, to include the current inventory of security management configuration data for services and information to confirm the Contractor has been monitoring accounts for compliance with security requirements. The DOJ Justice Security Operations Center (JSOC) must be able to access logs and events to investigate potential security breaches and perform security posture assessments associated with the Security Audit Identity Credential Access Management (ICAM) policies.

D. The Contractor must ensure that the CSP provides evidence of annual recertification of privileged user access management.

E. A C-SCRM review is mandatory for specified acquisitions in accordance with established process in EO 14028 and NIST SP 800-161, Cybersecurity Supply Chain Risk Management Practices for Systems and Organizations, or superseding document. All vendor products and solutions to be used on DOJ national security systems, enterprise-wide systems, or new FIPS-199 High and Moderate systems for the purpose of accessing, collecting, storing, processing, maintaining, using, sharing, retrieving, disseminating, transmitting, or disposing of DOJ Information must be submitted to DOJ OCIO for a C-SCRM review prior to contract award or ATO signature. Changes in corporate ownership or structure shall be reported to the CO for referral to C-SCRM. The Contractor shall notify the CO of any confirmed Supply Chain compromise affecting the Contractor's products or services within 1 hour of discovery.

___ The following C-SCRM requirements for acquisition of systems, hardware, or software which will be used in systems that are mission critical or process sensitive data apply to this award. **(CO check as appropriate in coordination with the Program Manager and/or System Owner)**

1. The Contractor shall develop and deliver a C-SCRM Plan. The C-SCRM Plan shall meet the format described in NIST SP 800-161, Appendix E. The C-SCRM plan shall address the following security controls from NIST SP 800-53 Rev 5: SR-2, SR-3, SR-4, SR-5, SR-6, SR-7, SR-8, SR-9, SR-10, and SR-11. Equivalent ISO 27000 series controls may be used if they are mapped to the NIST control(s).
2. The Contractor shall implement the required security controls as documented in the C-SCRM Plan. The requirements of the C-SCRM plan shall flow down to all subcontractors. Evidence of the certification and compliance is required.
3. For cloud platforms or managed services, upon request, the Contractor shall provide a current SBOM of the runtime production environment reflecting the software components and dependencies materially present in the service.
4. The Contractor shall provide evidence of compliance with the documented C-SCRM Plan. (CO select which applies)

- ___ Self-assessment by a contractor security team
- ___ External assessment by an independent auditor

VI. Information System Security Incident

A. Confirmed Security Incident. The Contractor shall immediately (and in no event later than 1 hour of discovery) report any Confirmed Security Incident to the DOJ CO and COR. If the Confirmed Security Incident occurs outside of regular business hours and/or neither the DOJ CO nor the COR can be reached, the Contractor must call JSOC at 1-202-357-7000 immediately (and in no event later than within 1 hour of discovery of the Confirmed Security Incident) and shall notify the CO and COR as soon as practicable.

B. Potential Security Incident.

1. If the Contractor suspects that DOJ information has been potentially disclosed or impacted, the Contractor shall promptly investigate to determine if a Security Incident has occurred. If the Contractor has not determined within 24 hours (i.e., 24 hours from detection of potential security incident and/or security breach) whether the Potential Security Incident was in fact a Security Incident, then it must immediately report the Potential Security Incident to the DOJ CO and the COR. If the time by which to report the Potential Security Incident occurs outside of regular business hours and/or neither the DOJ CO nor the COR can be reached, the Contractor must call or e-mail the JSOC Team at 1-202-357-7000 or JSOC@USDOJ.GOV and contact the DOJ CO and COR as soon as practicable. If the contract involves PII, the Contractor must comply with the notification requirements of DOJ-02 and Executive Order M-17-12 (Memorandum on Preparing for and Responding to a Breach of Personally Identifiable Information), Contractor Privacy Requirements, Section B.5, for an actual or suspected Security Incident.
2. The Contractor must limit sharing of Security Incident details to only those individuals involved in responding to the potential Security Incident. Any provisions of the Covered Contract regarding the citizenship or location of individuals working on the Covered Contract apply equally to individuals involved in responding to any potential Security Incidents. The Contractor may request assistance from the JSOC for advice, incident response, or FBI coordination. The Contractor must provide weekly updates to CO, COR and JSOC during the course of a Security Incident investigation.

C. Any report submitted in accordance with paragraphs (B) and (C), above, shall identify:

1. Both the Covered Information Systems and DOJ Information involved or at risk, including the type, amount, and level of sensitivity of the DOJ Information and, if the DOJ Information contains PII, the estimated number of unique instances of PII.
2. All steps and processes being undertaken by the Contractor to minimize, remedy, and/or investigate the Security Incident.
3. Any and all other information as required by the CISA Federal Incident Notification Guidelines, including the functional impact, information impact, impact to recoverability, threat vector, mitigation details, and all available incident details; and

The Contractor may request assistance from the JSOC Team for advice, incident response, or FBI coordination, and must provide weekly updates to CO, COR, and JSOC during the course of an Incident investigation.

D. Except as otherwise required by Federal, State and local laws, executive orders, rules and regulations, all determinations regarding whether and when to notify other individuals and/or federal agencies potentially affected by a Security Incident will be made by DOJ senior officials, the DOJ Core Management Team, or the COR at DOJ's discretion.

E. The Contractor must provide to DOJ full access to any facility and/or Covered Information System affected or potentially affected by any potential or confirmed Security Incident, including access by the DOJ OIG and federal law enforcement organizations, and undertake any and all response actions DOJ determines are required to ensure the protection of DOJ Information, including providing all requested images, log files, and event information to facilitate rapid resolution of any Security Incident.

F. DOJ, at its sole discretion, may obtain, and the Contractor will permit, the assistance of other federal agencies and/or third-party contractors or firms to aid in response activities related to any potential or confirmed Security Incident. Additionally, DOJ, at its sole discretion, may require the Contractor to retain, at the Contractor's expense, a 3PAO acceptable to DOJ, with expertise in incident response, compromise assessment, and federal security control requirements, to conduct a thorough vulnerability and security assessment of all affected Covered Information Systems.

G. Response activities related to any Security Incident undertaken by DOJ, including activities undertaken by the Contractor, other federal agencies, and any third-party contractors or firms at the request or direction of DOJ, may include inspections, investigations, forensic reviews, data analyses and processing, and final determinations of responsibility for the Security Incident and/or liability for any additional response activities. The Contractor shall be responsible for all costs

and related resource allocations required for all such response activities related to any Security Incident, including the cost of any penetration testing.

VII. Pass-Through of Security Requirements to Subcontractors and CSPs

A. The requirements set forth in the preceding paragraphs of this clause apply to all subcontractors and CSPs who perform work in connection with the contract, including any CSP providing services for any other CSP under the contract, and the Contractor shall flow down this clause to all subcontractors and CSPs performing under this contract. Any breach by any subcontractor or CSP of any of the provisions set forth in this clause will be attributed to the Contractor.

(End of Clause)

Section 3 - List of Attachments

Identifier	Title	Number of Pages
2	Subsistence Abstract FY26Q4.xlsx	
3	Subsistence Cover Letter.docx	
4	Subsistence Synopsis RFQP03072600012.docx	

Section 4 - Solicitation Provisions

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